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G-d Stands Among the Judges

Tehillim 82 and the Torah of the court: sources, commentary and a covenantal reading

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אלקים נצב בעדת קל בקרב אלקים ישפט

Aryeh Leib Thorne Toren, Torah scholar, researcher and writer

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Not for sale. For study at the table, in the beis midrash and at home.

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Contents

Introduction. A Song for the Third Day 4

Why the Levites sang of the judges, and how this booklet reads them

Chapter I. "G-d Stands in the Assembly" 8

The standing presence of G-d in the court (Tehillim 82:1)

Chapter II. "How Long Will You Judge Iniquity?" 18

The rebuke of unjust judgment (Tehillim 82:2)

Chapter III. "Judge the Poor and the Orphan" 27

Defending the vulnerable (Tehillim 82:3–4)

Chapter IV. "They Walk in Darkness" 36

Bribery, blindness and the shaken foundations (Tehillim 82:5)

Chapter V. "I Said, You Are Elokim" 45

Conditional elevation and mortality (Tehillim 82:6–7)

Chapter VI. "Not for Man but for Hashem" 54

Yehoshafat and the traditional models of the court (Divrei HaYamim II 19)

Chapter VII. The Seat Beside the Judges 64

Contemporary structural questions, as of 10 November 2026

Chapter VIII. Accountability, Not Supremacy 75

A covenantal republican synthesis

Chapter IX. "Arise, O G-d, Judge the Earth" 80

The closing horizon (Tehillim 82:8)

Appendix A. Tehillim 82 in full 86

Appendix B. Divrei HaYamim II 19:4–11 in full 87

Glossary 89

Bibliography 91

INTRODUCTION

A Song for the Third Day

Why the Levites sang of the judges, and how this booklet reads them

Tehillim 82 is the psalm of the court. This introduction sets out its shape, its place in the week, the double meaning of the word elohim, and the method of the chapters that follow.

A song for the third day

Eight verses. That is all Tehillim 82 is. A psalm of Asaf, short enough to say in under a minute, and the Levites sang it in the Mikdash every Tuesday. The Mishnah in Tamid lists the songs of the week, and the third day belongs to the judges.

> השיר שהיו הלוים אומרים במקדש, ביום הראשון היו אומרים (תהילים כ"ד:א'), לה' הארץ ומלואה תבל וישבי בה. בשני היו אומרים (שם מח), גדול ה' ומהלל מאד בעיר אלקינו הר קדשו. בשלישי היו אומרים (שם פב), אלקים נצב בעדת קל בקרב אלקים ישפט
>
> *The song the Levites would say in the Mikdash: on the first day they would say, "The earth and its fullness are Hashem's, the world and those who dwell in it." On the second they would say, "Great is Hashem and much praised, in the city of our G-d, His holy mountain." On the third they would say, "G-d stands in the assembly of G-d; in the midst of the judges He judges."*
>
> Mishnah Tamid 7:4 (opening)

This booklet was finished on Tuesday, 10 November 2026, which was 30 Cheshvan 5787, the first day of Rosh Chodesh Kislev. On that day, by the old order of the week, a Jew who says the Shir shel Yom says these eight verses. I have tried to take them as seriously as the Levites did: as a song that is also a summons.

The psalm has a simple shape. G-d stands among the judges (verse 1). He asks them how long they will judge iniquity (verse 2). He tells them what justice looks like: the poor, the orphan, the afflicted, the destitute (verses 3 and 4). The psalmist describes what happens when they refuse: they walk in darkness, and the foundations of the earth are shaken (verse 5). G-d reminds them what He had intended for them, and what they have become (verses 6 and 7). And then the psalmist turns away from the judges altogether and speaks to G-d: Arise, judge the earth (verse 8).

The nine sections of the outline follow that shape. The first five chapters walk through the psalm verse by verse. The sixth goes to the model the commentators themselves point to, King Yehoshafat and the judges he set in the cities of Judah. The seventh asks what the psalm says about the questions of judicial design that are being argued in Israel in November 2026. The eighth draws the threads together into the framework I have been building under the name Covenantal Republicanism. The ninth returns to the last verse, and to the horizon it opens.

Who is being judged

The first thing to notice is that the psalm is not about the guilty. It is about the court.

Most of the Torah's laws of justice are addressed to the judge. Do not pervert judgment. Do not recognise faces. Do not take a bribe. The litigant is protected; the judge is warned. Tehillim 82 carries that orientation to its end. The judges sit, and G-d stands. The judges rule, and G-d rules on them.

That reversal is the spine of everything that follows. A society that believes its highest court has no one above it will build very different institutions from a society that believes its highest court is itself on trial. The Sages read the psalm as a warning to every dayan in every generation. Rambam codifies it as halachah: a judge must know "whom he is judging, and before Whom he is judging, and Who will in the future exact payment from him." The question for a modern reader is what that awareness looks like when it has to be built into an institution rather than carried in one man's heart.

Why the word elohim matters

The psalm uses one word for G-d and for the judges: elohim. The Torah does the same. When a dispute over a deposit cannot be settled, "the case of both shall come before ha-elohim," and the Sages and the commentators read it as the court.

> על־כל־דבר־פשע על־שור על־חמור על־שה על־שלמה על־כל־אבדה אשר יאמר כי־הוא זה עד האלקים יבא דבר־שניהם אשר ירשיען אלקים ישלם שנים לרעהו
>
> *In every matter of trespass, for an ox, a donkey, a sheep, a garment, or any lost thing of which one says, "This is it," the case of both shall come before the judges [ha-elohim]; whomever the judges [elohim] declare guilty shall pay double to his fellow.*
>
> Shemos 22:8

The Torah also forbids cursing elohim, and Rashi explains that the verse covers both the Name and the judge.

> אלקים לא תקלל ונשיא בעמך לא תאר
>
> *You shall not curse the judges [elohim], and a prince among your people you shall not curse.*
>
> Shemos 22:27

> אלקים לא תקלל. הרי זו אזהרה לברכת השם ואזהרה לקללת דין
>
> *"You shall not curse elohim": this is a warning against "blessing" [a euphemism for cursing] the Name, and a warning against cursing a judge (Sanhedrin 66a).*
>
> Rashi on Shemos 22:27

A judge is called by the name of G-d because he does G-d's work. The same word that elevates him also binds him. If he is "elohim," then he is measured by the standard of the One whose name he carries, and Tehillim 82 is that measurement. Ibn Ezra notes both readings of the word in our psalm, angels and judges, and we will see that both have something to teach.

How to use this booklet

Each chapter opens with a short framing note. Then comes the essay, with the sources set out in the original and in English. The commentators on Tehillim 82 (Rashi, Ibn Ezra, Radak, the Metzudos and Malbim) are quoted at length, because in a booklet like this the sources have to carry the weight. Each chapter closes with questions for the table.

The Hebrew is printed without vowels, cut directly from the Sefaria texts opened on 10 November 2026. Divine names are written ה׳ and אלקים, and the name in verse 1 is written קל. In English I write G-d, L-rd and Hashem. The English renderings are my own working translations unless the bibliography says otherwise. Anyone teaching from this booklet should check a printed edition before relying on a quotation.

Two short appendices give the full text of Tehillim 82 and of Divrei HaYamim II 19:4–11 in Hebrew and English. A glossary and a full bibliography close the booklet.

A word about Chapter Seven

Chapter Seven touches the argument over Israel's courts that has run through the country since 2023. I have tried to write it the way the psalm writes: about the seat, not the person in it. No sitting judge, legal adviser, minister or party is named. No motive is imputed to anyone. Where a dated fact appears, its source is in the bibliography; where a fact rests on a single report, it is marked. The chapter does not argue for any side. It asks every side the same four questions, and those questions come from Tehillim 82.

The Mishnah teaches that the world stands on three things: judgment, truth and peace. Rabbi Chanina, the deputy of the kohanim, adds that one must pray for the welfare of

the government, because without it people would swallow one another alive. Both teachings belong at the threshold of this booklet. Judgment is not optional. Neither is humility about who is doing the judging.

> רבן שמעון בן גמליאל אומר, על שלשה דברים העולם עומד, על הדין ועל האמת ועל השלום, שנאמר (זכריה ח) אמת ומשפט שלום שפטו בשעריכם
>
> *Rabban Shimon ben Gamliel says: On three things the world stands: on judgment, on truth and on peace, as it says (Zechariah 8:16), "Truth and a judgment of peace, judge in your gates."*
>
> Avos 1:18

> רבי חנינא סגן הכהנים אומר, הוי מתפלל בשלומה של מלכות, שאלמלא מוראה, איש את רעהו חיים בלעו
>
> *Rabbi Chanina, deputy of the kohanim, says: Pray for the welfare of the government, for were it not for the fear of it, a man would swallow his neighbour alive.*
>
> Avos 3:2

CHAPTER I

“G-d Stands in the Assembly”

The standing presence of G-d in the court (Tehillim 82:1)

The judges sit; G-d stands. This chapter reads the first verse with Rashi, Ibn Ezra, Radak, the Metzudos and Malbim, follows it into Sanhedrin 6b–7a and Berachos 6a, and watches Rambam turn it into law. The theme is simple and severe: no court judges alone, and no court sits by itself.

The verb is standing

מזמור לאסף אלקים נצב בעדת־קל בקרב אלקים ישפט

A psalm of Asaf. G-d stands in the assembly of G-d; in the midst of the judges He judges.
Tehillim 82:1

The first word that matters in the psalm is a verb: nitzav, stands. It is not “sits,” the posture of a judge, and not “dwells,” the posture of the Shechinah in the Mikdash. It is the posture of someone who has come into a room in order to watch. The judges are seated. G-d is on His feet.

Rashi gives the purpose in five words: “to see whether they judge truly.” Then, without a break, he turns to the judges themselves, as the psalm does in its next verse.

אלקים נצב בעדת קל. לראות אם אמת ישפטו. ואתם, הדינים, עד מתי תשפטו עול?!

“G-d stands in the assembly of G-d”: to see whether they judge truly. And you, the judges: how long will you judge iniquity?
Rashi on Tehillim 82:1

That is the whole psalm in Rashi’s first comment. G-d is present in the court for one reason, to see whether the court is honest. The judges are addressed directly, in the second person, as people who are being watched. Rashi does not soften it. He does not say the judges should remember G-d. He says G-d is already there.

Three readings of the same room

The commentators agree that G-d stands in the court. They differ on who is in the room with Him, and each answer teaches something different about judgment.

Ibn Ezra offers two readings. In the first, the "assembly of G-d" is Israel, and the elohim in whose midst He judges are the angels, "for through the angels comes all of G-d's judgment on earth." In the second, which he gives in the name of others, elohim means the judges, as in the verse "You shall not curse elohim."

מזמור לאסף אלקים - טעם נצב בעדת קל - הכבוד שהוא עם עדת ישראל. בקרב אלקים - הם המלאכים שהם האלקים וצבא השמים בני האלקים, כי על ידי המלאכים הם כל משפט אלקים בארץ. ויש אומרים: כי בקרב אלקים – כמו: אלקים לא תקלל. והטעם: כי הוא בקרבם ויש להם לישמר שלא ישפטו עול.

> *"G-d stands in the assembly of G-d": the meaning is the Glory that is with the assembly of Israel. "In the midst of the judges [elohim]": these are the angels, who are "elohim," and the host of heaven are "children of elohim," for through the angels comes all of G-d's judgment on earth. And some say: "in the midst of elohim" as in "You shall not curse elohim" [Shemos 22:27, the judges]; and the meaning is that He is in their midst, and they must take care not to judge iniquity.*
>
> Ibn Ezra on Tehillim 82:1

The first reading places the human court inside a larger order. Judgment on earth is one level of a judgment that runs through the whole creation. The second reading, which most of the later commentators follow, places G-d inside the human court. Ibn Ezra draws the practical conclusion in one line: "He is in their midst, and they must take care not to judge iniquity." Both readings end in the same place. Nobody in that room judges alone.

Radak adds a historical guess and a theological claim. The psalm may have been said in the days of Yehoshafat, who set judges in the cities of Judah after a period of corrupt judging. And G-d's presence in an Israelite court is not a comfort; it is heightened scrutiny. He cites Amos: "Only you have I known of all the families of the earth; therefore I will call you to account for all your iniquities."

מזמור. זה המזמור נאמר על השופטים שהיו שופטים בעול אולי היה בימי יהושפט כי ראינו שהעמיד שופטי ארץ בכל ערי יהודה והזהירם מאד עליו כי היו שופטים קודם זה בעול: אמר אלקים נצב בעדת קל. כלומר כבודו עמהם להשגיח יותר משאר דיינים לפקוד עליהם כמעשיהם כמו שכתוב רק אתכם ידעתי מכל משפחות האדמה על כן אפקוד עליכם את כל עונותיכם: בקרב אלקים. בקרב הדיינים לשפוט ישראל כמו שצוה אותם ואם לא יעשו כן יודע ופוקד עליהם עונותם:

This psalm was said about the judges who were judging with iniquity; perhaps it was in the days of Yehoshafat, for we have seen that he appointed judges of the land in all the cities of Judah and warned them strongly about it, since before this they had judged with iniquity. He said: "G-d stands in the assembly of G-d," that is, His Glory is with them, to watch over them more than over other judges and to call them to account for their deeds, as it is written, "Only you have I known of all the families of the earth; therefore I will call you to account for all your iniquities." "In the midst of the judges": in the midst of the judges, to judge Israel as He commanded them; and if they do not do so, He knows and calls their iniquities to account.

Radak on Tehillim 82:1

Radak reads "G-d stands in the assembly of G-d" as a statement of increased liability. The court that carries G-d's name is watched more closely than other courts, not less. A modern reader might expect a religious court to claim religious immunity. Radak says the opposite. Nearness to G-d is the reason the judge will be called to account.

The Metzudos say the simplest thing. G-d sits among the judges "as though He judges with them," and the doubled language of the verse is only for emphasis.

בעדת קל. בתוך הדיינים השופטים לראות אם עושים משפט אמת: בקרב. יושב בקרב הדיינים וכאלו ישפוט עמהם וכפל הדבר לחזוק:

"In the assembly of G-d": among the judges, to see whether they do true judgment. "In the midst": He sits in the midst of the judges, as though He judges with them; the matter is doubled for emphasis.

Metzudas David on Tehillim 82:1

Malbim, writing in the nineteenth century with an eye for the structure of each verse, divides the room in two. G-d stands among the litigants and witnesses, who are required to stand; and G-d is also among the seated judges, judging with them. Then he moves the scene inward. "In the midst of the judges" means in the midst of the judges' hearts, where a word of G-d warns them.

אלקים נצב בעדת קל, אלקים עומד בין הבעלי דינים והעדים הבאים למשפט שהם צריכים לעמוד, אלקים עומד עמהם, וגם בקרב אלקים ישפט, גם נמצא בין השופטים ושופט עמהם, ומצייר ששופט בקרב אלקים, היינו בקרב לב השופטים נמצא דבר אלקים המזהיר אותם, ואומר להם עד מתי תשפטו עול, יצייר שה' צועק זאת בין עדת הבע"ד שמזהיר עמהם את השופטים, וגם ידבר כן בקרב השופטים (והמליצה שנפשם המוסריית תעיד להם בלבבם בשם ה' כי לא טוב עושים) והנה נטיית המשפט יהיה בשני פנים, א. במשפט של שני בעלי דינים שבאים למשפט, מלוה ולוה, קונה ומוכר, וכדומה עז"א עד מתי תשפטו עול, ב. בהעלם עין מעשות משפט בעושקים וחומסים ובעלי זרוע, ועז"א עד מתי פני רשעים תשאו

"G-d stands in the assembly of G-d": G-d stands among the litigants and the witnesses who come to judgment, who must stand; G-d stands with them. And also "in the midst of the judges He judges": He is present among the judges as well, and judges with them. And he pictures that He judges in the midst of the judges, that is, in the midst of the judges' hearts there is a word of G-d warning them, and saying to them, "How long will you judge iniquity?" He pictures that Hashem cries this out among the assembly of litigants, who warn the judges together with Him; and He also says so in the midst of the judges (the figure being that their moral soul testifies to them in their hearts, in the name of Hashem, that they are not doing good). Now the perversion of judgment takes two forms. First, in a case between two litigants who come to judgment, lender and borrower, buyer and seller and the like; about this it says, "How long will you judge iniquity." Second, by turning a blind eye to doing justice against oppressors, robbers and the strong-armed; about this it says, "How long will you lift up the faces of the wicked."

Malbim on Tehillim 82:1–2 (opening on Yehoshafat given in Chapter Six)

Malbim's parenthesis is the key to his reading: "the figure being that their moral soul testifies to them in their hearts, in the name of Hashem, that they are not doing good." The Divine presence in the court is also a presence in the conscience of every judge. When a judge leans, something in him knows it.

The baraisa in Sanhedrin

The Gemara turns the verse into an instruction. The passage on Sanhedrin 6b begins with witnesses and ends with judges, and both halves have the same three clauses.

ויהו הדיינין יודעין את מי הן דנין, ולפני מי הן דנין, ומי עתיד ליפרע מהן, שנאמר: "אלקים נצב בעדת קל". וכן ביהושפט הוא אומר: "ויאמר אל השפטים ראו מה אתם עשים כי לא לאדם תשפטו כי אם לה'". שמא יאמר הדיין: מה לי בצער הזה? תלמוד לומר: "עמכם בדבר משפט". אין לו לדיין אלא מה שעיניו רואות

And let the judges know whom they are judging, and before Whom they are judging, and Who will in the future exact payment from them, as it says, "G-d stands in the assembly of G-d." And so it says of Yehoshafat: "He said to the judges: See what you are doing, for you judge not for man but for Hashem." Lest the judge say, "What have I to do with this anguish?", the verse says, "He is with you in the matter of judgment": a judge has only what his eyes see.

Sanhedrin 6b

The judge must know three things. Whom he is judging: a human being, whose life or property is in his hands. Before Whom he is judging: the One who stands in the assembly. And Who will exact payment from him: the same One, who will hold the judge to account for the judgment. The verse from Yehoshafat completes it: "you judge not for man but for Hashem."

Then the Gemara answers the objection that every honest judge eventually raises. If the stakes are this high, why would anyone agree to sit? "What have I to do with this anguish?" The answer is the second half of Yehoshafat's verse: "He is with you in the matter of judgment." And the Gemara reads that phrase as a limit: "a judge has only what his eyes see."

That limit is a mercy. The judge is not asked to be G-d. He is asked to judge honestly on the evidence in front of him. The presence that frightens him also relieves him. He is responsible for truth as far as he can see it, and for nothing beyond that. The rest belongs to the One who is standing in the room.

Truth that brings the Shechinah down

A page later the Gemara gives the positive side. Rabbi Shmuel bar Nachmani teaches in the name of Rabbi Yonasan that a true judgment causes the Shechinah to rest upon Israel, and a false one drives it away.

אמר רבי שמואל בר נחמני אמר רבי יונתן: כל דיין שדן דין אמת לאמיתו, משרה שכינה בישראל, שנאמר: "אלקים נצב בעדת קל בקרב אלקים ישפט". וכל דיין שאינו דן דין אמת לאמיתו, גורם לשכינה שתסתלק מישראל, שנאמר: "משד עניים מאנקת אביונים עתה אקום יאמר ה' וגו'"

Rabbi Shmuel bar Nachmani said in the name of Rabbi Yonasan: Every judge who judges a true judgment truthfully causes the Shechinah to rest upon Israel, as it says, "G-d stands in the assembly of G-d; in the midst of the judges He judges." And every judge who does not judge a true judgment truthfully causes the Shechinah to depart from Israel, as it says, "Because of the plundering of the poor, because of the sighing of the needy, now I will arise, says Hashem" (Tehillim 12:6).

Sanhedrin 7a

The proof-text for the first half is our verse. The proof-text for the second half is Tehillim 12: "Because of the plundering of the poor, because of the sighing of the needy, now I will arise." G-d rises from the court when the court robs the poor. The image is exact. He stood in the assembly to see whether they would judge truly. When they do not, He leaves.

The phrase din emes la-amito, "a true judgment truthfully," appears again and again in these passages. The doubled word is not decoration. A judgment can be formally correct and still false: correct on the evidence, but reached by a judge who did not care, or who leaned, or who wanted a particular result and happened to get it. The Sages ask for a judgment that is true in its outcome and true in its making.

The Gemara in Berachos draws a smaller conclusion from the second half of the verse, and it is a striking one.

ומנין לשלשה שיושבין בדין ששכינה עמהם, שנאמר: "בקרב אלקים ישפט"

And from where [do we learn] that when three sit in judgment the Shechinah is with them? As it says, "In the midst of the judges He judges."

Berachos 6a

Three people sitting in judgment are enough. The Shechinah does not wait for the Great Sanhedrin in the Chamber of Hewn Stone. A beis din of three in a small town, hearing a claim over a debt, is an "assembly of G-d." The psalm speaks to every court, the smallest as well as the highest.

Rambam turns the verse into law

Rambam codifies these teachings in two places in Hilchos Sanhedrin. In chapter 3 he draws a consequence for the conduct of the court.

כל בית דין של ישראל שהוא הגון שכינה עמהם. לפיכך צריכין הדינים לישב באימה ויראה ועטיפה וכבד ראש ואסור להקל ראש או לשחק או לספר בשיחה בטלה בבית דין אלא בדברי תורה וחכמה

Every court in Israel that is fit, the Shechinah is with them. Therefore the judges must sit in awe and fear, wrapped [in a tallis] and with gravity; and it is forbidden to act lightly, or to joke, or to engage in idle talk in the court, but only in words of Torah and wisdom.

Rambam, Hilchos Sanhedrin 3:7

A fit court has the Shechinah with it, and therefore its judges must sit "in awe and fear." No joking, no light talk, nothing but Torah and wisdom. The rule sounds like etiquette. It is really a theory of the courtroom. The way the judges behave should make the Presence visible. A court that jokes from the bench tells the litigants that no one important is watching.

In chapter 23 Rambam gathers the teachings of Sanhedrin 6b and 7a into a single statement.

לעולם יראה דין עצמו כאלו חרב מנחת לו על צווארו וגיהנם פתוחה לו מתחתיו. וידע את מי הוא דן ולפני מי הוא דן ומי עתיד להפרע ממנו אם נטה מקו האמת שנאמר (תהילים פב א) "אלקים נצב בעדת קל". ואומר (דברי הימים ב יט ו) "ראו מה אתם עושים כי לא לאדם תשפטו כי לה'

A judge should always see himself as though a sword were lying on his neck and Gehinnom open beneath him. And let him know whom he is judging, and before Whom he is judging, and Who will in the future exact payment from him if he bends from the line of truth, as it says (Tehillim 82:1), "G-d stands in the assembly of G-d"; and it says (Divrei HaYamim II 19:6), "See what you are doing, for you judge not for man but for Hashem."

Rambam, Hilchos Sanhedrin 23:8

He adds one phrase that is not in the Gemara's list: "if he bends from the line of truth." The judge will be called to account for bending. And he changes the image of the sword. In the Gemara it lies between the judge's thighs, so that a lean to either side will wound him. In Rambam it lies on his neck. The judge sits with a blade against his throat and Gehinnom open below. That is how Tehillim 82:1 reads when it becomes halachah.

ואמר רבי שמואל בר נחמני אמר רבי יונתן: לעולם יראה דיין עצמו כאילו חרב מונחת לו בין ירכותיו, וגיהנם פתוחה לו מתחתיו

And Rabbi Shmuel bar Nachmani said in the name of Rabbi Yonasan: A judge should always see himself as though a sword were lying between his thighs and Gehinnom open beneath him.

Sanhedrin 7a

The judgment is G-d's

Moshe's charge to the judges in Devarim gives the reason behind all of this.

ואצוה את־שפטיכם בעת ההוא לאמר שמע בין־אחיכם ושפטתם צדק בין־איש ובין־אחיו ובין גרו
לא־תכירו פנים במשפט כקטן כגדל תשמעון לא תגורו מפני־איש כי המשפט לאלקים הוא והדבר
אשר יקשה מכם תקרבון אלי ושמעתיו

I charged your judges at that time, saying: Hear [the causes] between your brothers, and judge righteously between a man and his brother and the stranger with him. Do not recognise faces in judgment; hear the small and the great alike; do not fear any man, for the judgment is G-d's; and the matter that is too hard for you, bring to me and I will hear it.

Devarim 1:16–17

"For the judgment is G-d's." Rashi, drawing on Sanhedrin 8a, explains what that means in practice.

כי המשפט לאלקים הוא. מה שאתה נוטל מזה שלא כדין, אתה מזקיקני להחזיר לו, נמצא
שהטית עלי המשפט

"For the judgment is G-d's": what you take from this one unlawfully, you oblige Me to return to him; it turns out that you have bent the judgment against Me (Sanhedrin 8a).

Rashi on Devarim 1:17

"כי המשפט לאלקים הוא". אמר רבי חמא ברבי חנינא: אמר הקדוש ברוך הוא, לא דיין לרשעים
שנוטלין מזה ממון ונותנים לזה שלא כדין, אלא שמטריחין אותי להחזיר ממון לבעליו

"For the judgment is G-d's": Rabbi Chama son of Rabbi Chanina said: The Holy One, blessed be He, said: Is it not enough for the wicked that they take money from this one and give it to that one unlawfully, but they also trouble Me to return the money to its owner?

Sanhedrin 8a

A judge who takes money from one person and gives it to another without right has not only wronged the litigant. He has made G-d a party to the case. The money must go back, and G-d, in the image of the Gemara, is "troubled" to return it. A false judgment is a debt that G-d Himself has to settle.

Midrash Tehillim on our psalm joins the same verses. It reads Devarim 1:17 and Yehoshafat's charge as a single warning, and it puts the warning in G-d's mouth.

מזמור לאסף אלקים נצב בעדת קל. זהו שאמר הכתוב (דברים א יז) לא תכירו פנים במשפט. וכן יהושפט אומר (דברי הימים־ב יט ו) כי לא לאדם תשפטו כי לה' ועמכם בדבר המשפט. זה הקב"ה. שלא יאמרו הדיינין לעצמנו אנו יושבין. אמר להם הקב"ה הוו יודעין כי עמכם אני יושב שנאמר אלקים נצב בעדת קל. ונאמר (ישעיה סא ח) אני ה' אוהב משפט ואם הטיתם אותו אני אטה אתכם שנאמר (מלאכי ג ה) וקרבתי אליכם למשפט. הוי בקרב אלקים ישפוט:

"A psalm of Asaf. G-d stands in the assembly of G-d." This is what the verse says (Devarim 1:17): "You shall not recognise faces in judgment." And so Yehoshafat says (Divrei HaYamim II 19:6): "For you judge not for man but for Hashem, and He is with you in the matter of judgment": this is the Holy One, blessed be He, so that the judges should not say, "We sit by ourselves." The Holy One, blessed be He, said to them: Know that I sit with you, as it says, "G-d stands in the assembly of G-d." And it says (Yeshayahu 61:8), "I, Hashem, love justice"; and if you bend it, I will bend you, as it says (Malachi 3:5), "I will draw near to you for judgment." Thus, "in the midst of the judges He judges."

Midrash Tehillim 82:1

"So that the judges should not say, 'We sit by ourselves.'" That is the temptation the psalm is written against. Every court, sooner or later, is tempted to believe it sits by itself: that its rulings have no audience but the parties, no review but its own, no judge above it. The Midrash answers in G-d's voice: Know that I sit with you. And it adds a line of measure for measure: "if you bend it, I will bend you."

What standing asks of a court

Put the sources together and the first verse of the psalm gives four lessons for anyone who sits in judgment, from a beis din of three to a supreme court.

The first is that the court is watched. G-d stands in the assembly "to see whether they judge truly." The court does not have the last word; it is itself under judgment.

The second is that nearness raises the standard. Radak reads the verse as a statement of greater accountability, not lesser. A court that claims to act in G-d's name, or in the name of the highest values of a people, has made itself more answerable.

The third is that the Presence is felt in the conscience. Malbim's word of G-d "in the midst of the judges' hearts" means that the first check on a judge is inside him. Institutions can support that inner check. They cannot replace it.

The fourth is that the judge is limited, and the limit is a relief. "A judge has only what his eyes see." He is not asked to know everything. He is asked to see honestly and to rule on what he sees.

These four lessons will return in Chapter Seven, when the question turns to how a modern state chooses its judges and checks its legal officers. A court that knows it is watched will welcome review. A court that thinks it sits by itself will resist it. The psalm's first verse already decides which kind of court Israel is meant to have.

For the table

1. Rashi says G-d stands "to see whether they judge truly." What changes in a courtroom when the judges believe they are being watched?
2. Radak reads the verse as greater accountability for a court that carries G-d's name. Does that apply to any court that claims to speak for a people's highest values?
3. The Gemara says "a judge has only what his eyes see." Is that a limit on the judge, a comfort to him, or both?
4. Rambam forbids joking and idle talk in court because the Shechinah is present. What would the modern equivalent of that rule be?
5. Midrash Tehillim warns the judges not to say "We sit by ourselves." What are the signs that a court has started to believe it does?

CHAPTER II

“How Long Will You Judge Iniquity?”

The rebuke of unjust judgment (Tehillim 82:2)

The second verse is a question, and a question from G-d is a rebuke. This chapter reads it with the commentators on Tehillim 82, sets it beside Vayikra 19:15 and Shemos 23, and follows Rashi and Rambam on what “lifting the faces of the wicked” means in a courtroom.

A question from G-d

עַד־מָתַי תִּשְׁפְּטוּ־עָוֶל וּפְנֵי רְשָׁעִים תִּשְׂאוּ־סֶלָה

> *How long will you judge iniquity, and lift up the faces of the wicked? Selah.*
> Tehillim 82:2

The psalm’s second verse is a question, and G-d does not ask questions for information. “How long” is the language of a parent who has warned before and is warning again. The judges have been doing this for some time. G-d has been watching for some time. The question tells them that the watching is about to end.

The verse names two failures. The first is “judging iniquity,” a judgment that is simply wrong. The second is “lifting up the faces of the wicked,” which is a different and subtler thing. A judge can reach a correct result while flattering the powerful party in the way he conducts the case. He can be lenient with one side’s delays and strict with the other’s. He can let one man speak at length and cut the other short. The verse treats both as perversions of judgment.

The commentators on verse 2

Ibn Ezra hears the question as a rebuke addressed to the judges as elohim, and he explains the idiom “lifting the face” by its opposite. When Kayin was angry, G-d asked him why his face had fallen. A fallen face is shame. A lifted face is confidence, and a judge who lifts the face of the wicked gives him confidence he has not earned.

עד - עתה יוכיח השופטים שהם אלקים מתי תשפטו משפט עול, כי כח השם במלאכים בפעלים. ופני רשעים תשאו - הפך: נפלו פניך, על כן אחריו: הלא אם תטיב שאת.

"How long": now he rebukes the judges, who are "elohim": how long will you judge a judgment of iniquity? For the power of Hashem is in the angels, in their actions. "And lift up the faces of the wicked": the opposite of "your face has fallen"; therefore there follows, "Surely if you do well, there is uplift" [Bereishis 4:6–7].

Ibn Ezra on Tehillim 82:2

Radak says who the wicked are and why judges lift their faces: "because they are strong and great and rich." The wicked in this verse are not criminals on trial. They are the powerful, who rob the poor and expect the court to look away.

ופני רשעים. לפי שהם חזקים וגדולים ועשירים תשאו פניהם ולא תקחו מידם משפט העניים: שפטו. קחו משפטם מהעושקים מהם ממונם: הצדיקו. כשהיה הצדק עמהם הצדיקו אותם ולא תיראו מהעושקים ולא תשאו פניהם:

"And the faces of the wicked": because they are strong and great and rich, you lift up their faces and do not take the judgment of the poor out of their hands. "Judge": take [back] their judgment from those who rob them of their money. "Do justice": when right was with them, declare them right, and do not fear the oppressors, and do not lift up their faces.

Radak on Tehillim 82:2–3

The Metzudos add the word that the idiom carries in the language of the Tanach: flattery. Metzudas Tziyon cites Mishlei 18:5, "to lift up the face of the wicked."

תשאו. ענין חנופה וכן שאת פני רשע (משלי י"ח:ה'):

"You lift up [the faces]": a term for flattery, as in "to lift up the face of the wicked" (Mishlei 18:5).

Metzudas Tziyon on Tehillim 82:2

Metzudas David then explains the danger with a scene that every judge will recognise. A judge says to himself, I will find in favour of the rich man so as not to shame him in public, and afterwards I will quietly tell him that the law was against him. The judge thinks he is being kind. The Metzudos call it lifting the face of the wicked.

עד מתי. הואיל וכן א"כ עד מתי תשפטו עול ולעולם תשאו פני הרשעים להחניפם בדבר המשפט: שפטו. לא כן עשו כ"א שפטו דל ויתום במשפט הראוי ולא תרחמו עליהם במשפט: הצדיקו. בעת המשפט אם הוא צדיק בריבו ולא תאמרו אזכה במשפט את העשיר בעל דינו שלא לביישו ואח"ז אודיעו שהדין עם שכנגדו:

> *"How long": since this is so, how long will you judge iniquity and always lift up the faces of the wicked, flattering them in the matter of judgment? "Judge": do not do so; rather, judge the poor and the orphan with the proper judgment, and do not show them mercy in judgment. "Do justice": at the time of judgment, if he is in the right in his dispute; and do not say, "I will find in favour of the rich man, his opponent, so as not to shame him, and afterwards I will let him know that the law is with the other side."*
>
> Metzudas David on Tehillim 82:2–3

Two words in this comment deserve attention. The first is "always": "how long will you always lift up the faces of the wicked." Partiality is rarely a single act. It becomes a habit of the court. The second is the instruction about the poor man: "do not show them mercy in judgment." The Metzudos do not want the court to favour the poor either. They want a proper judgment, and the proper judgment is the one the evidence supports.

Malbim makes the distinction explicit. There are two ways to pervert judgment. One is in a dispute between two parties, lender and borrower, buyer and seller: here the judge simply rules wrongly. The other is "turning a blind eye to doing justice against oppressors, robbers and the strong-armed": here the court fails to act at all.

אלקים נצב בעדת קל, אלקים עומד בין הבעלי דינים והעדים הבאים למשפט שהם צריכים לעמוד, אלקים עומד עמהם, וגם בקרב אלקים ישפט, גם נמצא בין השופטים ושופט עמהם, ומצייר ששופט בקרב אלקים, היינו בקרב לב השופטים נמצא דבר אלקים המזהיר אותם, ואומר להם עד מתי תשפטו עול, יצייר שה' צועק זאת בין עדת הבע"ד שמזהיר עמהם את השופטים, וגם ידבר כן בקרב השופטים (והמליצה שנפשם המוסריית תעיד להם בלבבם בשם ה' כי לא טוב עושים) והנה נטיית המשפט יהיה בשני פנים, א. במשפט של שני בעלי דינים שבאים למשפט, מלוה ולוה, קונה ומוכר, וכדומה עז"א עד מתי תשפטו עול, ב. בהעלם עין מעשות משפט בעושקים וחומסים ובעלי זרוע, ועז"א עד מתי פני רשעים תשאו

"G-d stands in the assembly of G-d": G-d stands among the litigants and the witnesses who come to judgment, who must stand; G-d stands with them. And also "in the midst of the judges He judges": He is present among the judges as well, and judges with them. And he pictures that He judges in the midst of the judges, that is, in the midst of the judges' hearts there is a word of G-d warning them, and saying to them, "How long will you judge iniquity?" He pictures that Hashem cries this out among the assembly of litigants, who warn the judges together with Him; and He also says so in the midst of the judges (the figure being that their moral soul testifies to them in their hearts, in the name of Hashem, that they are not doing good). Now the perversion of judgment takes two forms. First, in a case between two litigants who come to judgment, lender and borrower, buyer and seller and the like; about this it says, "How long will you judge iniquity." Second, by turning a blind eye to doing justice against oppressors, robbers and the strong-armed; about this it says, "How long will you lift up the faces of the wicked."

Malbim on Tehillim 82:1–2 (opening on Yehoshafat given in Chapter Six)

The second failure is the harder to see. A court that rules wrongly leaves a record. A court that declines to act against the strong leaves only silence, and the silence looks like neutrality. Malbim reads "lifting the faces of the wicked" as exactly this silence. The psalm will answer it in verse 4: "rescue the poor and the needy, save them from the hand of the wicked."

Midrash Tehillim gives G-d's reason for refusing to let the court rob the rich for the sake of the poor, and the reason is theological.

עד מתי תשפטו עול. ואתם נושאים פנים לרשעים שנאמר פני רשעים תשאו סלה. רצוני לעשות משפט. שפטו דל ויתום והצדיקו עליו את הדין לא בשביל שהוא עני תגזלו משל עשיר. ולמה (תהלים כד א) לה' הארץ ומלואה. שלי הוא העולם ואני אמרתי להעשירו ואתם נוטלין את שלו. לא ידעו ולא יבינו בחשכה יתהלכו. אין יודעין לדון את הדין ועל כך העולם מתמוטט שנאמר ימוטו כל מוסדי ארץ:

"How long will you judge iniquity": and you lift up the faces of the wicked, as it says, "and lift up the faces of the wicked, Selah." My will is to do justice. "Judge the poor and the orphan," and justify the judgment upon him: not because he is poor should you rob from what belongs to the rich man. And why? (Tehillim 24:1) "The earth and its fullness are Hashem's." The world is Mine, and I said I would make him rich, and you take what is his. "They do not know and they do not understand; they walk about in darkness": they do not know how to judge the case, and because of this the world totters, as it says, "all the foundations of the earth are shaken."

Midrash Tehillim 82:2

"The world is Mine, and I said I would make him rich, and you take what is his." A judge who redistributes property by bending the law is not doing charity. He is overruling G-d's distribution with his own. The Midrash does not say the poor should be ignored. Charity is a mitzvah, and the court can encourage it. But judgment is not charity, and a judge who confuses the two has made himself the owner of the world.

Do not favour the poor, do not honour the great

The Torah says the same thing twice, in Vayikra and in Shemos.

לא־תעשו עול במשפט לא־תשא פני־דל ולא תהדר פני גדול בצדק תשפט עמיתך

Do no iniquity in judgment: do not lift up the face of the poor, and do not honour the face of the great; in righteousness you shall judge your fellow.

Vayikra 19:15

לא־תהיה אחרי־רבים לרעת ולא־תענה על־רב לנטת אחרי רבים להטת ודל לא תהדר בריבו

Do not follow the many to do evil, and do not respond in a dispute by leaning after the many to pervert [it]. And do not favour a poor man in his dispute.

Shemos 23:2–3

The order in Vayikra is striking. The Torah warns against favouring the poor before it warns against honouring the great. One might think the second warning was enough, since the great are the ones who can pay, threaten and reward. The Torah knows better. A judge with a good heart is tempted to lean toward the poor, and the temptation is dangerous precisely because it feels like righteousness. Shemos goes further and joins the two in a single passage: do not follow the many to do evil, and do not favour a poor

man in his dispute. Pressure from the crowd and sympathy for the weak are both forms of leaning.

Rashi on Devarim spells out both temptations, in a passage he draws from the Sifrei.

כקטן כגדל תשמעון. שיהא חביב עליך דין של פרוטה כדין של מאה מנה, שאם קדם ובא לפניך, לא תסלקנו לאחרון. ד"א — כקטן כגדל תשמעון כתרגומו, שלא תאמר זה עני הוא וחברו עשיר ומצוה לפרנסו, אזכה את העני ונמצא מתפרנס בנקיות; ד"א — שלא תאמר היאך אני פוגם כבודו של עשיר זה בשביל דינר, אזכנו עכשיו, וכשיוצא לחוץ אמר לו תן לו שאתה חיב לו

"Hear the small and the great alike": a case over a perutah should be as dear to you as a case over a hundred maneh, so that if it came before you first, you do not push it to the end. Another explanation: "Hear the small and the great alike," as the Targum renders it: that you not say, "This one is poor and his fellow rich, and it is a mitzvah to support him; I will acquit the poor man, and he will turn out to be supported respectably." Another explanation: that you not say, "How can I damage the honour of this rich man for a dinar? I will acquit him now, and when he goes outside I will tell him, 'Give him what you owe him.'"

Rashi on Devarim 1:17

The first explanation is about attention. A case over a perutah must be as dear to the judge as a case over a hundred maneh. A court that hurries the small cases and lingers over the large ones has already recognised faces, even if it rules correctly in both. The second explanation is the temptation of sympathy: this man is poor, his opponent is rich, and supporting the poor is a mitzvah, so I will acquit him. The third is the temptation of deference, and it is exactly the scene in the Metzudos: I will acquit the rich man now and tell him privately to pay. All three are forbidden by the same words, "hear the small and the great alike."

Partiality in the conduct of the case

Rashi on Devarim 16 adds that partiality begins before the ruling, at the time of the pleadings.

לא תכיר פנים. אף בשעת הטענות; אזהרה לדין שלא יהא רך לזה וקשה לזה, אחד עומד ואחד יושב, לפי שכשרואה זה שהדין מכבד את חברו מסתתמין טענותיו: ולא תקח שחד. אפלו לשפט צדק (ספרי): כי השחד יעור. משקבל שחד ממנו אי אפשר שלא יטה את לבו אצלו להפך בזכותו

"Do not recognise faces": even at the time of the pleadings; a warning to the judge that he not be soft to this one and hard to that one, one standing and one sitting, for when this one sees that the judge honours his fellow, his pleas are stopped up. "And do not take a bribe": even to judge righteously (Sifrei). "For a bribe blinds": once he has accepted a bribe from him, it is impossible that he not turn his heart toward him, to argue for his merit.

Rashi on Devarim 16:19

"One standing and one sitting." If the judge lets one party sit and makes the other stand, the standing party sees that the court honours his opponent, and "his pleas are stopped up." A litigant who feels the court is against him cannot argue well. So the judge who shows partiality in posture or tone has already distorted the evidence, because he has silenced one side.

Rambam turns this into a set of rules.

> מצות עשה לשפט השופט בצדק שנאמר (ויקרא יט טו) "בצדק תשפט עמיתך". אי זהו צדק המשפט זו השוית שני בעלי דינין בכל דבר. לא יהא אחד מדבר כל צרכו ואחד אומר לו קצר דבריך. ולא יסביר פנים לאחד וידבר לו רכות וירע פניו לאחר וידבר לו קשות
>
> *It is a positive commandment for the judge to judge in righteousness, as it says (Vayikra 19:15), "In righteousness you shall judge your fellow." What is righteousness in judgment? It is making the two litigants equal in every respect: that one not speak as much as he needs while the other is told, "Make it short"; and that he not show a pleasant face to one and speak softly to him, and frown at the other and speak harshly to him.*
>
> Rambam, Hilchos Sanhedrin 21:1

> שני בעלי דינין שהיה אחד מהם מלבש בגדים יקרים והשני מלבש בגדים בזויין אומר למכבד או הלבישהו כמותך עד שתדון עמו או לבש כמותו עד שתהיו שוין אחר כך תעמדו בדין
>
> *Two litigants, one of whom was dressed in costly clothes and the other in shabby clothes: [the court] says to the honoured one, "Either dress him as you are dressed until you have your case with him, or dress as he is, so that you are equal; afterwards you will stand in judgment."*
>
> Rambam, Hilchos Sanhedrin 21:2

Righteousness in judgment means making the two parties equal in every respect: in time to speak, in the tone of the judge's voice, in the expression on his face, and even in clothing. If one litigant is dressed richly and the other poorly, the court tells the rich man to dress his opponent as well as himself, or to dress down. Only then does the case begin.

The Gemara reads the same equality into the first words of Moshe's charge, "hear between your brothers."

> "שמע בין אחיכם ושפטתם" – אמר רבי חנינא: אזהרה לדיין שלא ישמע דברי בעל דין קודם שיבא בעל דין חבירו, ואזהרה לבעל דין שלא יטעים דבריו לדיין קודם שיבא בעל דין חבירו.
>
> *"Hear between your brothers and judge": Rabbi Chanina said: This is a warning to the judge not to hear the words of one litigant before the other litigant comes, and a warning to a litigant not to explain his words to the judge before the other litigant comes.*
>
> Sanhedrin 7b

The judge may not hear one party before the other arrives, and the party may not explain his case to the judge in his opponent's absence. Partiality can begin before the hearing, in a private word that the other side never gets to answer.

This is the deepest answer to the second half of verse 2. The faces of the wicked are lifted not only by a wrong ruling but by every sign the court gives that one party matters more. Rambam's rules make the equality of the parties visible. The litigants should be able to see, before a word is spoken, that the court does not lift anyone's face.

The judge is not an advocate

Yehudah ben Tabbai gives judges a rule that sounds harsh and turns out to be humane.

> יהודה בן טבאי אומר, אל תעש עצמך כעורכי הדינין. וכשיהיו בעלי דינין עומדים לפניך, יהיו בעיניך כרשעים. וכשנפטרים מלפניך, יהיו בעיניך כזכאין, כשקבלו עליהם את הדין
>
> *Yehudah ben Tabbai says: Do not make yourself like those who arrange the pleas [for litigants]. When the litigants stand before you, let them be in your eyes as guilty; and when they leave you, let them be in your eyes as innocent, once they have accepted the judgment upon themselves.*
>
> Avos 1:8

> ולעולם יהיו בעלי דינין לפניך כרשעים ובחזקת שכל אחד מהן טוען שקר ודון לפי מה שתראה מן הדברים. וכשיפטרו מלפניך יהיו בעיניך כצדיקים כשקבלו עליהם את הדין ודון כל אחד מהם לכף זכות
>
> *And let the litigants always be before you as wicked, under the presumption that each one is pleading falsely, and judge according to what you see of the matter. And when they leave you, let them be in your eyes as righteous, once they have accepted the judgment, and judge each of them favourably.*
>
> Rambam, Hilchos Sanhedrin 23:10

While the case is before him, the judge regards both parties as though each might be pleading falsely. When the case is over and the judgment is accepted, he regards both as righteous. The suspicion carries no contempt. It is the discipline that keeps the judge from becoming an advocate. A judge who has decided in advance that one party is honest will hear that party's evidence generously and the other's grudgingly. Equal suspicion during the case is a form of equal respect.

The first clause of the mishnah is the warning itself: "Do not make yourself like those who arrange the pleas." The judge must not coach one side. We will see in the next chapter that Rambam allows a small exception for a litigant who cannot speak for himself, and that he hedges it carefully. But the default is clear. The judge judges. He does not argue.

What verse 2 asks

Taken together, the commentators and the halachah give the rebuke of verse 2 a precise content. A court lifts the face of the wicked when it rules for the powerful because they are powerful. It also lifts their face when it fails to act against them, when it treats their cases with more care than the cases of the poor, when it lets them speak longer, when it shows them a warmer face, or when it spares them public embarrassment at the cost of a private injustice.

And a court perverts judgment in the opposite direction when it rules for the poor because they are poor. The Midrash says that is taking what G-d has given another. The Torah forbids it before it forbids the more obvious sin.

The question “how long” is addressed to a court that has done these things for a long time and has come to think of them as normal. That is why it is a question and not a law. The laws were given in the Torah. The psalm asks the judges whether they still believe them.

For the table

1. Malbim distinguishes two kinds of perverted judgment: in a dispute between two parties, and in failing to act against the strong. Which is harder to see from outside?
2. Vayikra 19:15 forbids favouring the poor as well as honouring the great. Why does the Torah need both prohibitions?
3. Rashi on Devarim says a judge must treat a case of a perutah like a case of a hundred maneh. What does that ask of a busy court?
4. Rambam forbids a judge to hear one litigant in the absence of the other. What does this rule protect, besides the absent party?
5. Yehudah ben Tabbai tells judges not to act as advocates. When does an activist judge become an advocate?

CHAPTER III

“Judge the Poor and the Orphan”

Defending the vulnerable (Tehillim 82:3–4)

After the rebuke comes the command, and it has four names in it: the poor, the orphan, the afflicted, the destitute. This chapter reads the commentators on verses 3 and 4, then Shabbat 10a on the judge as G-d’s partner in creation, and the Gemara’s debate on Sanhedrin 6b about compromise and strict law.

Four names

> שפטו־דל ויתום עני ורש הצדיקו
>
> *Judge the poor and the orphan; do justice to the afflicted and the destitute.*
> Tehillim 82:3

> פלטו־דל ואביון מיד רשעים הצילו
>
> *Rescue the poor and the needy; save them from the hand of the wicked.*
> Tehillim 82:4

After the rebuke, the command. Verse 3 names four people: the dal, the yasom, the ani and the rash. The poor or weak, the orphan, the afflicted, the destitute. Verse 4 adds the evyon, the needy, and names the threat: “the hand of the wicked.”

These are not the litigants who deserve to win. They are the litigants likely to lose for reasons that have nothing to do with the merits. The orphan has no father to speak for him. The afflicted has no strength to pursue a case. The destitute cannot wait, and cannot pay. Every one of them depends on the court to do what the court is supposed to do for everyone. The psalm names them because they are the ones a corrupt court abandons first.

Mishpat and tzedek

Rashi reads verse 3 narrowly and precisely. The poor man is to be vindicated when he is in the right, and the court is not to overturn his right in order to flatter his opponent.

> הצדיקו. אם זכאי הוא בדינו, אל תהפכו דינו לטובה בשביל לשאת פני רשעים

"Do justice": if he is in the right in his case, do not overturn his judgment to his detriment in order to lift up the faces of the wicked.

Rashi on Tehillim 82:3

That is the measure of the verse. It does not ask the court to favour the poor. It asks the court not to take from the poor what the law gives them. The rebuke of verse 2 and the command of verse 3 are the same demand from two sides.

Ibn Ezra notices why these particular people are named. The orphan has no helper and cannot speak for himself; the widow has no husband. Then he divides verse 3 from verse 4. Verse 3 is about money. Verse 4 is about life.

> שפטו - עשו משפט יתום שאין עוזר לו, שלא יוכל לדבר ואלמנה שאין לה בעל הצדיקו, כי הרשעים יעשו להם חמס ואתם נושאים פניהם. פלטו - שפטו דל בממון ופלטו דל בנפש.

"Judge": do justice for the orphan who has no helper, who cannot speak [for himself], and the widow who has no husband; "do justice," for the wicked commit violence against them and you lift up their faces. "Rescue": judge the poor in matters of money, and rescue the poor in matters of life.

Ibn Ezra on Tehillim 82:3–4

Radak, more briefly, says the same of verse 4: rescue them "so that they not oppress them in their bodies."

> פלטו. רוצה לומר שלא יעשקום בגופו:

"Rescue": he means, so that they not oppress them in their bodies.

Radak on Tehillim 82:4

Malbim draws the deepest distinction. Verse 3 uses two verbs, shiftu (judge) and hatzdiku (do justice), and Malbim reads them as two levels. Mishpat is the law between the parties. Tzedek "is more than mishpat: it looks to the circumstances and to the people being judged." And verse 4, in his reading, answers the second failure he found in verse 2: the court that does not act against the strong-armed.

שפטו, כ"ז מדברי הקל, נגד הטיית משפט בין שני בעלי דינים אומר שפטו דל ויתום, ומוסיף לאמר עני ורש הצדיקו, שישפטו משפט צדק, שהצדק הוא יותר מן המשפט שישקיף לפי הענין והנדונים: פלטו, ונגד לעשות משפט לנעשקים ונגזלים מיד בעלי זרוע, אמר פלטו דל ואביון והצילו אותו מיד רשעים הבאים לעשקו:

"Judge": all this is the word of G-d. Against the perversion of judgment between two litigants he says, "Judge the poor and the orphan," and he adds, "do justice to the afflicted and the destitute," that they judge a judgment of tzedek, for tzedek is more than mishpat: it looks to the circumstances and to the people being judged. "Rescue": and against [neglecting] to do justice for the oppressed and robbed at the hands of the strong-armed, he says, "Rescue the poor and the needy, and save him from the hand of the wicked who come to oppress him."

Malbim on Tehillim 82:3–4

Malbim's tzedek is not partiality. It is attention. The judge who sees only the claim and the counterclaim will miss what the orphan cannot say, what the afflicted is too tired to press, what the destitute gave up because he could not afford to wait. Tzedek asks the court to see the people as well as the papers. Rambam will show how far that may go and where it must stop.

Opening the mouth of the mute

Rambam allows the judge a small and careful intervention.

ראה הדין זכות לאחד מהן ובעל דין מבקש לאמרה ואינו יודע לחבר הדברים. או שראהו מצטער להציל עצמו בטענת אמת ומפני החמה והכעס נסתלק ממנו או נשתבש מפני הסכלות. הרי זה מתר לסעדו מעט להבינו תחלת הדבר משום (משלי לא ח) "פתח פיך לאלם". וצריך להתישב בדבר זה הרבה שלא יהיה כעורכי הדינין

If the judge saw a point of merit for one of them, and the litigant wants to say it but does not know how to put the words together; or he saw him struggling to save himself with a true plea, and because of anger and vexation it slipped from him, or he became confused through lack of understanding: it is permitted to help him a little, to make him understand the beginning of the matter, because of (Mishlei 31:8) "Open your mouth for the mute." But he must deliberate over this a great deal, so that he not become like those who arrange the pleas.

Rambam, Hilchos Sanhedrin 21:11

The case is precise. A litigant has a true plea and cannot put it into words, or he loses his thread through anger or confusion. The judge may help him "a little," to make him understand "the beginning of the matter." The source is Mishlei 31.

פתח־פיך לאלם אל־דין כל־בני חלוף פתח־פיך שפט־צדק ודין עני ואביון

Open your mouth for the mute, for the cause of all who are passing away. Open your mouth, judge righteously, and plead the cause of the poor and the needy.

Mishlei 31:8–9

And then the hedge: "he must deliberate over this a great deal, so that he not become like those who arrange the pleas." This is Yehudah ben Tabbai's warning from the last chapter. The two rules stand together. The judge may not become an advocate. The judge may not let a true plea die because the man who owns it cannot speak. Between the two is a narrow path, and Rambam asks the judge to walk it with great deliberation.

Rambam also gives an order of precedence when many cases are waiting.

היו לפני הדינים בעלי דין הרבה מקדימין את דין היתום לדין האלמנה שנאמר (ישעיה א יז) "שפטו יתום ריבו אלמנה". ודין אלמנה קודם לדין תלמיד חכם. ודין תלמיד חכם קודם לדין עם הארץ. ודין האשה קודם לדין האיש שבשת האשה מרבה

If many litigants were before the judges, they give precedence to the case of the orphan over the case of the widow, as it says (Yeshayahu 1:17), "Judge the orphan, plead for the widow." And the widow's case comes before the case of a Torah scholar, and the scholar's case before the case of an unlearned man; and a woman's case before a man's, for a woman's embarrassment is greater.

Rambam, Hilchos Sanhedrin 21:6

למדו היטב דרשו משפט אשרו חמוץ שפטו יתום ריבו אלמנה

Learn to do good; seek justice; set right the oppressor; judge the orphan; plead for the widow.

Yeshayahu 1:17

The orphan's case is heard before the widow's, the widow's before the scholar's, the scholar's before the unlearned man's, and a woman's before a man's, "for a woman's embarrassment is greater." Precedence decides nothing about the merits. It makes sure that the people who can least afford delay are not the ones who are always kept waiting. Yeshayahu's verse names the same two people as our psalm and in the same order: judge the orphan, plead for the widow.

"I will surely hear his cry"

The Torah adds a warning that explains why the psalm cares so much about these names.

כל־אלמנה ויתום לא תענון אם־ענה תענה אתו כי אם־צעק יצעק אלי שמע אשמע צעקתו

You shall not afflict any widow or orphan. If you afflict him at all, for if he cries out at all to Me, I will surely hear his cry.

Shemos 22:21–22

The widow and the orphan have no one to cry to except G-d, and G-d says He will hear. The Gemara on Sanhedrin 7a draws the consequence for the court.

ואמר רבי שמואל בר נחמני אמר רבי יונתן: כל דיין שנוטל מזה ונותן לזה שלא כדין, הקדוש ברוך הוא נוטל ממנו נפשו, שנאמר: "אל תגזל דל כי דל הוא ואל תדכא עני בשער כי ה' יריב ריבם וקבע את קבעיהם נפש"

And Rabbi Shmuel bar Nachmani said in the name of Rabbi Yonasan: Every judge who takes from this one and gives to that one not according to law, the Holy One, blessed be He, takes his soul from him, as it says, "Do not rob the poor because he is poor, and do not crush the afflicted in the gate; for Hashem will plead their cause, and will take the life of those who rob them" (Mishlei 22:22–23).

Sanhedrin 7a

The verse from Mishlei is the key: "Do not crush the afflicted in the gate, for Hashem will plead their cause." The gate was the court. A judge who takes from the weak unlawfully finds that his opponent is not the weak man but G-d, who takes up the case Himself. The judge who robbed a man of his money is answered by the loss of his soul.

Rambam puts this beside the reward for true judgment, and the reward is as large as the punishment.

כל דין שאינו דן דין אמת לאמתו גורם לשכינה שתסתלק מישראל. וכל דין שנוטל מזה ונותן לזה שלא כדין הקדוש ברוך הוא גובה ממנו נפשות שנאמר (משלי כב כג) "וקבע את קבעיהם נפש". וכל דין שדן דין אמת לאמתו אפלו שעה אחת כאלו תקן את כל העולם כלו וגורם לשכינה שתשרה בישראל שנאמר (תהילים פב א) "אלקים נצב בעדת קל". ושמא יאמר הדין מה לי ולצרה הזאת תלמוד לומר (דברי הימים ב יט ו) "ועמכם בדבר משפט". אין לדין אלא מה שעיניו רואות

Every judge who does not judge a true judgment truthfully causes the Shechinah to depart from Israel. And every judge who takes from this one and gives to that one unlawfully, the Holy One, blessed be He, exacts lives from him, as it says (Mishlei 22:23), "He will take the life of those who rob them." And every judge who judges a true judgment truthfully, even for one hour, it is as though he repaired the entire world, and he causes the Shechinah to rest upon Israel, as it says, "G-d stands in the assembly of G-d." And lest the judge say, "What have I to do with this trouble?", the verse says (Divrei HaYamim II 19:6), "He is with you in the matter of judgment": a judge has only what his eyes see.

Rambam, Hilchos Sanhedrin 23:9

"Even for one hour, it is as though he repaired the entire world." The Gemara in Shabbos 10a says something larger still, and the story there is worth reading in full.

Partners in creation

The Gemara tells of two pairs of sages. The first pair knocked on the door every hour.

רב אמי ורב אסי הוו יתבי וגרסי ביני עמודי. וכל שעתא ושעתא הוו טפחי אעיברא דדשא ואמרי: אי איכא דאית ליה דינא, ליעול וליתי

Rav Ami and Rav Asi would sit and study between the pillars, and every hour they would knock on the bolt of the door and say: If anyone has a case, let him come in.

Shabbos 10a

Rav Ami and Rav Asi were studying Torah. Every hour they stopped, knocked on the door, and asked whether anyone outside had a case. They did not wait for litigants to find them. They went looking. The second pair sat in judgment all day and grew weary, and a sage taught them a reading of the Torah that changed how they saw their work.

רב חסדא ורבה בר רב הונא הוו יתבי בדינא כולי יומא, הוה קא חליש לבייהו. תנא להו רב חייא בר רב מדפתי: "ויעמד העם על משה מן הבקר עד הערב", וכי תעלה על דעתך שמשה יושב ודן כל היום כולו? תורתו מתי נעשית? אלא לומר לך כל דיין שדן דין אמת לאמיתו, אפילו שעה אחת, מעלה עליו הכתוב כאילו נעשה שותף להקדוש ברוך הוא במעשה בראשית. כתיב הכא: "ויעמד העם על משה מן הבקר עד הערב", וכתיב התם: "ויהי ערב ויהי בקר יום אחד"

Rav Chisda and Rabbah bar Rav Huna would sit in judgment all day, and their hearts grew faint. Rav Chiya bar Rav of Difti taught them: "And the people stood about Moshe from the morning until the evening" (Shemos 18:13). Would it enter your mind that Moshe sat and judged the whole day? When was his Torah done? Rather, it is to tell you: every judge who judges a true judgment truthfully, even for one hour, the verse credits him as though he had become a partner of the Holy One, blessed be He, in the work of creation. It is written here, "from the morning until the evening," and it is written there, "And there was evening and there was morning, one day."

Shabbos 10a

Moshe could not have judged from morning to evening; he had Torah to learn and to teach. So the phrase "from the morning until the evening" must mean something else. It is an echo of the first chapter of Bereishis: "there was evening and there was morning, one day." A judge who judges truly, even for an hour, becomes a partner of the Holy One in the work of creation.

What does a true judgment create? It creates a world in which the orphan's claim is heard, the widow is not kept waiting, and the strong cannot take what is not theirs. G-d made the world with order. A court that rules truly continues that work. A court that rules falsely undoes it, and verse 5 will tell us what that looks like.

Justice and charity on Sanhedrin 6b

The Gemara's long discussion of compromise on Sanhedrin 6b asks how King David could be described as doing "justice and charity to all his people." If he did justice, there was no charity; if he did charity, there was no justice. Two answers are given.

> אתאן לתנא קמא. דן את הדין, זיכה את הזכאי וחייב את החייב. וראה שנתחייב עני ממון, ושלם לו מתוך ביתו – זה משפט וצדקה
>
> *We return to the first tanna: he judged the case, acquitted the innocent and held the guilty liable; and he saw that a poor man was held liable for money, and paid for him out of his own house. This is "justice and charity."*
>
> Sanhedrin 6b

The first answer: David judged the case strictly, and when the poor man lost and had to pay, David paid for him out of his own pocket. The court did justice. The king did charity. The two are kept apart.

> קשיא ליה לרבי: האי "לכל עמו" – לעניים מיבעי ליה! אלא, רבי אומר: אף על פי שלא שילם מתוך ביתו, זהו משפט וצדקה. משפט לזה וצדקה לזה: משפט לזה – שהחזיר לו ממונו, וצדקה לזה – שהוציא גזילה מתחת ידו
>
> *Rebbi found this difficult: "to all his people"? It should have said "to the poor"! Rather, Rebbi says: even if he did not pay from his own house, this is justice and charity. Justice to this one and charity to that one: justice to this one, that he returned his money to him; and charity to that one, that he removed the stolen property from his hand.*
>
> Sanhedrin 6b

Rebbi found that answer too narrow. The verse says "to all his people," not "to the poor." So he read it differently. Even without paying from his own house, a true judgment is justice to one side and charity to the other: justice to the man whose money is returned, and charity to the man from whose hand the stolen property is removed. A true ruling is a kindness even to the loser, because it frees him from holding what is not his.

Rebbi's answer goes to the heart of verse 3. The command to do justice for the poor asks the court to give everyone, rich and poor, the gift of a true judgment.

Do not fear any man

The same page of the Gemara tells the judge when he may decline a case and when he may not.

וריש לקיש אמר: שנים שבאו לדין, אחד רך ואחד קשה, עד שלא תשמע דבריהם, או משתשמע דבריהן ואין אתה יודע להיכן דין נוטה – אתה רשאי לומר להם: "אין אני נזקק לכם", שמא נתחייב חזק ונמצא חזק רודפו. משתשמע דבריהן ואתה יודע להיכן הדין נוטה – אי אתה יכול לומר להן: "איני נזקק לכם", שנאמר: "לא תגורו מפני איש"

Reish Lakish said: Two who came to judgment, one soft and one hard: before you hear their words, or after you hear their words but do not know which way the judgment leans, you may say to them, "I will not take up your case," lest the strong one be held liable and the strong one then pursue him [the judge]. Once you hear their words and know which way the judgment leans, you may not say to them, "I will not take up your case," as it says, "You shall not fear any man."

Sanhedrin 6b

Two parties come, one soft and one hard. Before the judge has heard them, or before he knows which way the law leans, he may decline. Once he knows, he may not, because "you shall not fear any man." The judge who withdraws from a case because he sees that the strong party will lose has handed the weak party over to the strong.

The last teaching extends the duty from the judge to his student.

רבי יהושע בן קרחה אומר: מניין לתלמיד שיושב לפני רבו וראה זכות לעני וחובה לעשיר, מניין שלא ישתוק? שנאמר: "לא תגורו מפני איש". רבי חנין אומר: לא תכניס דבריך מפני איש

Rabbi Yehoshua ben Korcha says: From where [do we learn] that a student who sits before his teacher and sees a point of merit for the poor man and a point of liability for the rich man must not keep silent? As it says, "You shall not fear any man." Rabbi Chanin says: Do not hold back your words because of any man.

Sanhedrin 6b

A student sits before his teacher and sees a point in favour of the poor man and against the rich man. He must not stay silent. "Do not hold back your words because of any man." The poor man's right is not protected only by the judge. Everyone in the room who sees it is responsible for saying so.

What verses 3 and 4 ask

The four names in verse 3 tell the court whom to watch for. The two verbs tell it how: mishpat, the law as it stands, and tzedek, attention to the people the law is applied to. Verse 4 tells it to act against the hand of the wicked, not only to rule between parties who have already arrived.

The sages add three disciplines. Go looking for cases, as Rav Ami and Rav Asi knocked on the door. Do not withdraw when the strong party is about to lose. Do not stay silent when you see the weak party's right. A court that keeps these disciplines is a partner in

creation. A court that abandons them has made itself a partner of the hand of the wicked, and G-d, who hears the cry of the orphan, will plead the case against it.

For the table

1. Ibn Ezra and Radak read verse 3 as a duty to act, not only to rule. Where is the line between a judge who rescues and a judge who takes sides?
2. Shabbat 10a says one true judgment makes a judge a partner in creation. What is created when a court rules truly?
3. Shemos 22 warns that G-d hears the cry of the widow and orphan. Who hears it in a modern court system?
4. Sanhedrin 6b records a debate about compromise. When does compromise protect the weak, and when does it abandon them?
5. Rambam lets a judge make the poor man's case fully heard, but forbids him to favour it. How would you put that rule into practice?

CHAPTER IV

“They Walk in Darkness”

Bribery, blindness and the shaken foundations (Tehillim 82:5)

Verse 5 is the psalm’s diagnosis. The judges do not know and do not understand; they walk in darkness; and the foundations of the earth totter. This chapter reads it with the commentators, with the Torah’s law of bribery and Rashi’s gloss on it, and with the famous stories of Kesubos 105 about judges who refused even the smallest favour.

The diagnosis

> לא ידעו ולא יבינו בחשכה יתהלכו ימוטו כל־מוסדי ארץ
>
> *They do not know and they do not understand; they walk about in darkness; all the foundations of the earth are shaken.*
>
> Tehillim 82:5

Verse 5 is the only verse in the first half of the psalm that is not spoken to the judges. It is spoken about them. G-d has asked how long, and has said what justice requires. Now the psalmist turns to the reader and describes what he sees. The judges do not know. They do not understand. They walk about in darkness. And the earth itself is shaking.

The verse moves from the smallest scale to the largest. It begins inside the judge’s mind, with what he knows and does not know. It moves to his path, where he walks in the dark. It ends with the foundations of the earth. The psalm does not let us think that a corrupt court is a private failure. What happens in the judge’s heart reaches the ground the world stands on.

Chosen ignorance

Rashi reads the verse as a single chain of cause and effect. The judges do not understand that their sin will bring darkness, and he cites the verse that will run through this whole chapter: “a bribe blinds.”

לא ידעו. הדינין המעותים את הדין: ולא יבינו. את אשר בשביל העון הזה יתהלכו בחשכה (על דרך "כי השחד יעור וגו'" (שמות כג:ח)), וימוטו על כך מוסדי ארץ

"They do not know": the judges who pervert judgment. "And they do not understand": that because of this sin they will walk in darkness (in the manner of "for a bribe blinds," Shemos 23:8), and because of it the foundations of the earth will be shaken.

Rashi on Tehillim 82:5

The Metzudos make the ignorance a choice: "the judges do not set their hearts to know." They are like a man walking in the dark who does not know what he will trip over. And they explain the shaking of the earth with the mishnah we read in the introduction: the world stands on three things, and judgment is one of them.

לא ידעו. אין הדיינים נותנים לב לדעת ולהבין חומר העון והרי הם כההולך בחשיכה ואינו יודע במה יכשל: ימוטו. הלא בעבור קלקול הדין ימוטו מוסדי הארץ והיא קרובה לפול כי על שלשה דברים העולם עומד והדין אחד מהם כן ארז"ל:

"They do not know": the judges do not set their hearts to know and understand the gravity of the sin, and so they are like one who walks in darkness and does not know on what he will stumble. "Are shaken": surely, because judgment is spoiled, the foundations of the earth are shaken and it is close to falling; for the world stands on three things, and judgment is one of them, as our Sages of blessed memory said.

Metzudas David on Tehillim 82:5

Ibn Ezra gives two readings, and the second is sharper than the first. Perhaps the judges truly did not understand the psalmist's rebuke. Or perhaps "they kept silent as if they did not know."

לא - דברי המשורר שהוכיחם ולא ידעו ולא הבינו, או טעמו, שתקו כאילו לא ידעו. וטעם בחשכה יתהלכו – כי השוחד יעור עיני פקחים. וטעם ימוטו – ראוים הם מוסדי ארץ שימוטו בעבור עיוות הדין, או לא יחוסו השופטים שימוטו כל מוסדי ארץ.

"They do not know": the words of the psalmist, who rebuked them, and they neither knew nor understood; or its meaning is that they kept silent as if they did not know. And the meaning of "they walk about in darkness": for a bribe blinds the eyes of the clear-sighted. And the meaning of "are shaken": the foundations of the earth deserve to be shaken because of the perversion of judgment; or, the judges do not care that all the foundations of the earth are shaken.

Ibn Ezra on Tehillim 82:5

That second reading is the one that matters for any institution. A court rarely admits that it is acting unjustly. It is more likely to act as though the question had not been raised. Ibn Ezra's second reading of the end of the verse is just as pointed: "the judges do not care that all the foundations of the earth are shaken." Not knowing becomes not caring.

Radak takes the shaking literally, and reaches back to the Flood.

לא ידעו ולא יבינו. השופטים הם כאילו לא ידעו ולא יבינו דבר המשפט ובחשיכה יתהלכו בו כי השוחד יעור: ימוטו כל מוסדי ארץ. מפני מעשיהם ימוט כל מוסדות ארץ ויחריב העולם כי המבול בא לעולם מפני החמס:

"They do not know and they do not understand": the judges are as if they do not know and do not understand the matter of judgment, and they walk about in it in darkness, for a bribe blinds. "All the foundations of the earth are shaken": because of their deeds all the foundations of the earth are shaken and the world is destroyed, for the Flood came upon the world because of violence [chamas].

Radak on Tehillim 82:5

The generation of the Flood was destroyed because "the earth was filled with chamas," violent wrong done by the strong to the weak. Radak reads our verse in that light. When the courts allow the strong to rob the weak, they bring back the condition that once destroyed the world.

Light, nature and society

Malbim reads verse 5 as a theory of why justice holds up the world. Justice is "the light of the world," and it is "the foundation of the inhabited earth." Without it, the world loses its support in two ways.

ועי"כ בחשכה יתהלכו, מציין את המשפט שהוא אור העולם והוא מוסדות תבל, וע"י העדר המשפט יתהלכו בחשכה וימוטו כל מוסדי ארץ, ור"ל שהמשפט מחזיק ישוב הארץ בשני אופנים, א. מצד הגמול האלקי שאם אין דין למטה ימנע אורו והשפעתו מלמעלה ובחשכה יתהלכו, ב. מצד הטבע שאז איש את רעהו חיים בלעו וא"א שיתקיים הישוב המדיני, ועז"א ימוטו כל מוסדי ארץ:

... and through this, "they walk about in darkness." He marks justice as the light of the world, and it is the foundation of the inhabited earth; through the absence of justice "they walk about in darkness, and all the foundations of the earth are shaken." He means that justice holds up the settled world in two ways: first, from the side of Divine recompense, for if there is no judgment below, His light and His flow from above are withheld, and "they walk about in darkness"; second, from the side of nature, for then each man swallows his neighbour alive, and political society cannot endure. About this it says, "all the foundations of the earth are shaken."

Malbim on Tehillim 82:5 (second half)

The first is from above. If there is no judgment below, the Divine light and flow from above are withheld, and the people walk in darkness. The second is from below, from

nature: without courts, "each man swallows his neighbour alive, and political society cannot endure."

Malbim's second reason is the teaching of Rabbi Chanina, deputy of the kohanim, that we read in the introduction: pray for the welfare of the government, for without fear of it a man would swallow his neighbour alive. Malbim borrows the very phrase. He has joined two kinds of explanation that are often kept apart. One is theological: justice draws down the light. The other is political: justice is what makes a society possible at all. The psalm needs both. A court that fails loses the Shechinah, as Sanhedrin 7a taught, and it also loses the trust that holds a people together.

"For a bribe blinds"

Every commentator on verse 5 reaches for the same verse in Shemos, and its companion in Devarim.

> לא תטה משפט אביֽנך בריבו׃ מדבר־שקר תרחק ונקי וצדיק אל־תהרג כי לא־אצדיק רשע׃ ושחד לא תקח כי השחד יעור פקחים ויסלף דברי צדיקים

Do not pervert the judgment of your needy one in his dispute. Keep far from a false matter, and do not kill the innocent and the righteous, for I will not justify the wicked. And do not take a bribe, for a bribe blinds the clear-sighted and perverts the words of the righteous.

Shemos 23:6–8

> שפטים ושטרים תתן־לך בכל־שעריך אשר ה' אלקיך נתן לך לשבטיך ושפטו את־העם משפט־צדק׃ לא־תטה משפט לא תכיר פנים ולא־תקח שחד כי השחד יעור עיני חכמים ויסלף דברי צדיקם׃ צדק צדק תרדף למען תחיה וירשת את־הארץ אשר־ה' אלקיך נתן לך

Judges and officers you shall appoint for yourself in all your gates that Hashem your G-d gives you, for your tribes, and they shall judge the people with righteous judgment. Do not pervert judgment; do not recognise faces; and do not take a bribe, for a bribe blinds the eyes of the wise and perverts the words of the righteous. Justice, justice you shall pursue, so that you may live and inherit the land that Hashem your G-d gives you.

Devarim 16:18–20

The Torah does not say that a bribe blinds the wicked. It says that a bribe blinds "the clear-sighted," "the eyes of the wise," and perverts "the words of the righteous." The warning is addressed to the best judges, not the worst. The Gemara in Kesubos makes the point explicit.

תנו רבנן: "כי השוחד יעור עיני חכמים", קל וחומר לטפשין. "ויסלף דברי צדיקים", קל וחומר לרשעים. מידי טפשים ורשעים בני דינא נינהו? אלא הכי קאמר: "כי השוחד יעור עיני חכמים", אפילו חכם גדול ולוקח שוחד — אינו נפטר מן העולם בלא סמיות הלב

The Rabbis taught: "For a bribe blinds the eyes of the wise": all the more so the foolish. "And perverts the words of the righteous": all the more so the wicked. But are fools and the wicked fit to judge? Rather, this is what it means: "For a bribe blinds the eyes of the wise": even a great sage who takes a bribe will not leave the world without blindness of heart.

Kesubos 105a

אפילו צדיק גמור ולוקח שוחד — אינו נפטר מן העולם בלא טירוף דעת

["And perverts the words of the righteous":] even a completely righteous man who takes a bribe will not leave the world without confusion of mind.

Kesubos 105b

Fools and the wicked are not fit to judge in the first place. The verse is speaking about the great sage and the completely righteous man. Even they, if they take a bribe, will not leave the world without blindness of heart and confusion of mind.

Rashi on Shemos gives the halachic conclusion: a bribe is forbidden "even to judge truly."

ושחד לא תקח. אפלו לשפט אמת, וכל שכן כדי להטות את הדין, שהרי להטות את הדין נאמר כבר (דברים ט"ז) לא תטה משפט (כתובות ק"ה): יעור פקחים. אפלו חכם בתורה ונוטל שחד סוף שתטרף דעתו עליו וישתכח תלמודו ויכהה מאור עיניו

"And do not take a bribe": even to judge truly, and all the more so to pervert judgment, for about perverting judgment it was already said, "Do not pervert judgment" (Devarim 16) (Kesubos 105a). "Blinds the clear-sighted": even one wise in Torah who takes a bribe will end with his mind confused, his learning forgotten, and the light of his eyes dimmed.

Rashi on Shemos 23:8

This is one of the most demanding rules in the Torah's law of the court. The judge who takes money and then rules correctly has still sinned. Rambam codifies it and adds that he must return the bribe.

"לא תקח שחד" אין צריך לומר לעות את הדין אלא אפלו לזכות את הזכאי ולחיב את החיב אסור ועובר בלא תעשה. והרי הוא בכלל ארור לקח שחד. וחיב להחזיר השחד כשיתבענו הנותן

"Do not take a bribe" (Devarim 16:19): it need not be said to pervert judgment; even to acquit the innocent and convict the guilty it is forbidden, and he transgresses a negative commandment. And he is included in "Cursed is he who takes a bribe," and he must return the bribe when the giver claims it.

Rambam, Hilchos Sanhedrin 23:1

Why should a bribe be forbidden when the judgment is correct? Because the Torah is protecting more than this case. It is protecting the judge's eyes. Once he has taken something from one side, he can no longer see that side clearly, and the next case will be judged by a man who is already partly blind.

How a bribe works

Rava explains the mechanism.

> אמר רבא: מאי טעמא דשוחדא? כיון דקביל ליה שוחדא מיניה, איקרבא ליה דעתיה לגביה והוי כגופיה, ואין אדם רואה חובה לעצמו. מאי "שוחד" — שהוא חד. אמר רב פפא: לא לידון איניש דינא למאן דרחים ליה, ולא למאן דסני ליה. דרחים ליה — לא חזי ליה חובה, דסני ליה — לא חזי ליה זכותא

Rava said: What is the reason for [the prohibition of] a bribe? Once he has received a bribe from him, his mind draws close to him and he becomes like himself, and a person does not see fault in himself. What is shochad? She-hu chad, "that he is one." Rav Pappa said: A person should not judge a case for one he loves, nor for one he hates; for one he loves, he does not see his fault; for one he hates, he does not see his merit.

Kesubos 105b

"Once he has received a bribe from him, his mind draws close to him and he becomes like himself, and a person does not see fault in himself." The word shochad, says Rava, is she-hu chad, "that he is one." A bribe makes the judge one with the giver. He does not decide to favour him. He simply stops seeing him as another person, and starts seeing the case from his side.

Rav Pappa draws the conclusion for love and hatred. A man does not see the fault of someone he loves or the merit of someone he hates. And Rambam turns this into a rule.

> אסור לדין לדון למי שהוא אוהבו אף על פי שאינו שושבינו ולא רעו אשר כנפשו ולא למי ששונאו אף על פי שאינו אויב לו ולא מבקש רעתו אלא צריך שיהיו שני בעלי דינים שוין בעיני הדינים ובלבם. ואם לא היה מכיר את אחד מהם ולא מעשיו אין לך דין צדק כמוהו

It is forbidden for a judge to judge for one he loves, even if he is not his groomsman nor his dearest friend, nor for one he hates, even if he is not his enemy and does not seek his harm. Rather, the two litigants must be equal in the eyes and hearts of the judges. And if he did not know either of them or their deeds, there is no righteous judge like him.

Rambam, Hilchos Sanhedrin 23:6

"There is no righteous judge like him" who knows neither party. Rambam's rule reaches past bribes to any bond that makes one party part of the judge. Love, friendship, hatred, debt and gratitude all do what Rava says a bribe does.

Rabbi Abahu gives the most ironic version of the lesson.

אמר רבי אבהו: בא וראה כמה סמויות עיניהן של מקבלי שוחד. אדם חש בעיניו, נותן ממון לרופא — ספק מתרפא ספק אינו מתרפא. והן נוטלין שוה פרוטה ומסמין עיניהן, שנאמר: "כי השוחד יעור פקחים"

Rabbi Abahu said: Come and see how blind are the eyes of those who take a bribe. A man whose eyes hurt gives money to a doctor; perhaps he will be healed, perhaps not. And these take something worth a perutah and blind their own eyes, as it says, "For a bribe blinds the clear-sighted."

Kesubos 105a

A man with sore eyes pays a doctor and may or may not be healed. A judge takes a perutah and blinds himself for certain. The judge pays nothing and loses his sight.

A bribe of words

The rabbis then extend the prohibition beyond money.

תנו רבנן: "ושוחד לא תקח", אינו צריך לומר שוחד ממון, אלא אפילו שוחד דברים נמי אסור, מדלא כתיב "בצע לא תקח"

The Rabbis taught: "You shall not take a bribe": there is no need to say a bribe of money; even a bribe of words is forbidden, since it does not say, "You shall not take gain."

Kesubos 105b

The Torah says "do not take a bribe," not "do not take gain," and so even a bribe of words is forbidden. Rambam gathers the stories of the Gemara about judges who recused themselves for favours so small that most of us would not notice them. He opens with a rule about fees and with the sons of Shmuel.

כל דין שיושב ומגדל מעלתו כדי להרבות שכר לחזניו ולסופריו הרי הוא בכלל הנוטים אחרי הבצע. וכן עשו בני שמואל ולכך נאמר להם (שמואל א ח ג) "ויטו אחרי הבצע ויקחו שחד". ולא שחד ממון בלבד אלא אפלו שחד דברים. ומעשה בדין אחד שהיה עולה בדוגית קטנה לעבר בנהר ופשט אחד ידו וסיעו בעליתו והיה לו דין ואמר לו הדין הריני פסול לך לדין.

Any judge who sits and enlarges his station in order to increase the fees of his attendants and his scribes is included among "those who turn aside after gain." And so did the sons of Shmuel, and therefore it is said of them (Shmuel I 8:3), "They turned aside after gain and took bribes." And not a bribe of money alone, but even a bribe of words. It happened that a judge was climbing into a small boat to cross a river, and someone stretched out his hand and helped him up; and he had a case [before him]. The judge said to him: I am disqualified from judging you.

Rambam, Hilchos Sanhedrin 23:3 (first of the four stories)

A judge who "enlarges his station" to increase the fees of his court has turned aside after gain, and the sons of Shmuel are the warning. And the first story: a judge was stepping into a small boat to cross a river, and a man held out his hand to help him. The judge discovered that the man had a case before him, and said, "I am disqualified from judging you." A hand held out at a riverbank was enough.

The standard is extreme on purpose. The judge does not ask himself whether the favour will change his ruling. He assumes it will, because the Torah has told him that it blinds even the wise. His only protection is distance.

Princes who love a bribe

Yeshayahu describes the result in a verse that reads like a commentary on ours.

> שריך סוררים וחברי גנבים כלו אהב שחד ורדף שלמנים יתום לא ישפטו וריב אלמנה לא־יבוא אליהם
>
> *Your princes are rebellious and companions of thieves; every one loves a bribe and chases after payments; they do not judge the orphan, and the widow's cause does not come to them.*
>
> Yeshayahu 1:23

"They do not judge the orphan, and the widow's cause does not come to them." That is the failure of verses 3 and 4. The cause of it is in the first half of the verse: every one of them loves a bribe and chases after payments. Bribery and the abandonment of the weak are not two sins. They are one. A court that is bound to the powerful by favours will not hear the people who have nothing to give.

The foundations

The psalm says that the foundations of the earth are shaken. The Mishnah says the world stands on judgment, truth and peace.

> רבן שמעון בן גמליאל אומר, על שלשה דברים העולם עומד, על הדין ועל האמת ועל השלום, שנאמר (זכריה ח) אמת ומשפט שלום שפטו בשעריכם
>
> *Rabban Shimon ben Gamliel says: On three things the world stands: on judgment, on truth and on peace, as it says (Zechariah 8:16), "Truth and a judgment of peace, judge in your gates."*
>
> Avos 1:18

Rabban Shimon ben Gamliel's proof-text is from Zechariah: "Truth and a judgment of peace, judge in your gates." The three foundations are joined in a single command to the courts. When the gates do not judge truly, all three are shaken at once.

Verse 5 is the turning point of the psalm. Until now, G-d has rebuked and commanded. From here on, He will speak of consequences. The judges who walk in darkness are about to learn that they are mortal.

For the table

1. Rashi and Radak read the judges' ignorance as chosen, not innocent. What does a judge have to do in order not to know?
2. Shemos 23:8 says a bribe blinds "the clear-sighted." Why does the Torah stress the wise and righteous rather than the corrupt?
3. Kesubos 105 records judges who recused themselves over a hand held out at a river or a bundle of figs. What is the modern equivalent?
4. Why does injustice in the court shake "the foundations of the earth" rather than only the society in which it happens?
5. Rambam says a judge who takes a bribe must return it even if he judged correctly. What does that teach about what a bribe destroys?

CHAPTER V

“I Said, You Are Elokim”

Conditional elevation and mortality (Tehillim 82:6–7)

Verses 6 and 7 are the hinge of the psalm. G-d had meant the judges to be elevated, and they will die like men. Rashi reads the verses with Sinai and with Adam; Avodah Zarah 5a turns them into a doctrine of conditional elevation. This chapter argues that office in the Torah is a charge, not a status.

The hinge of the psalm

> אניֿ־אמרתי אלקים אתם ובני עליון כלכם
>
> *I said: you are godly beings, and children of the Most High, all of you.*
> Tehillim 82:6

> אכן כאדם תמותון וכאחד השרים תפלו
>
> *Yet you will die like a man, and fall like one of the princes.*
> Tehillim 82:7

These two verses are the hinge on which the psalm turns. G-d has rebuked the judges and told them what justice requires. The psalmist has described their blindness. Now G-d speaks about the judges’ status, and He speaks in the past tense. “I said.” There was a plan for these people. They were meant to be elohim, children of the Most High. And now, “yet,” they will die like any man.

The word that carries the verse is achen, translated “yet” or “surely.” It marks the gap between what G-d intended and what the judges have made of themselves. Everything in these two verses turns on that gap.

Sinai and the first man

Rashi reads verse 6 as the elevation of Sinai, and verse 7 as the fall that followed when that elevation was lost.

אלקים אתם. מלאכים; כשנתתי לכם את התורה, נתתיה לכם על מנת שאין מלאך המות שולט עוד בכם

"You are godly beings": angels. When I gave you the Torah, I gave it to you on the condition that the Angel of Death would no longer rule over you.

Rashi on Tehillim 82:6

אכן כאדם תמותון. אכן כאדם הראשון תמותון, אחרי שחבלתם מעשיכם כמוהו (עבודה זרה ה,א; מכילתא יתרו בחדש ט): וכאחד השרים. הראשונים שמתו, כן תפלו. ומדרש אגדה : כאחד השרים של מעלה, שנאמר (ישעיהו כד:כא): "יפקד ה' על צבא המרום במרום"

"Yet you will die like a man": like Adam the first man you will die, since you spoiled your deeds as he did (Avodah Zarah 5a; Mechilta, Yisro). "And like one of the princes": like the first ones who died, so will you fall. And a midrash aggadah: like one of the princes on high, as it says (Yeshayahu 24:21), "Hashem will punish the host of the heights on high."

Rashi on Tehillim 82:7

When G-d gave the Torah, He gave it on a condition: the Angel of Death would no longer rule over Israel. They would be like angels. Then they spoiled their deeds, and so they would die like Adam, who also received a single commandment and also failed to keep it. Rashi cites the Gemara in Avodah Zarah, and the Gemara says it twice, in two voices.

דתניא: רבי יוסי אומר: לא קיבלו ישראל את התורה אלא כדי שלא יהא מלאך המות שולט בהן, שנאמר: "אני אמרתי אלקים אתם ובני עליון כלכם", חבלתם מעשיכם, "אכן כאדם תמותון"

As it was taught: Rabbi Yosei says: Israel accepted the Torah only so that the Angel of Death would not rule over them, as it says, "I said, you are godly beings, and children of the Most High, all of you"; you spoiled your deeds: "Yet you will die like a man."

Avodah Zarah 5a

אמר ריש לקיש: בואו ונחזיק טובה לאבותינו, שאלמלא הן לא חטאו — אנו לא באנו לעולם, שנאמר: "אני אמרתי אלקים אתם ובני עליון כלכם", חבלתם מעשיכם — "אכן כאדם תמותון וגו'"

Reish Lakish said: Come, let us give thanks to our ancestors, for had they not sinned, we would not have come into the world, as it says, "I said, you are godly beings, and children of the Most High, all of you"; you spoiled your deeds: "Yet you will die like a man."

Avodah Zarah 5a

Rabbi Yosei states the doctrine: Israel accepted the Torah only so that the Angel of Death would not rule over them. Reish Lakish draws the strange and humble conclusion: let us thank our ancestors, for had they not sinned we would not have been born. If the

generation of Sinai had become immortal, there would have been no generations after them.

The same page of the Gemara frames all creation as conditional.

> מלמד שהתנה הקדוש ברוך הוא עם מעשה בראשית, ואמר: אם מקבלין ישראל את התורה — מוטב, ואם לאו — אחזיר אתכם לתוהו ובוהו
>
> *This teaches that the Holy One, blessed be He, made a condition with the work of creation and said: If Israel accept the Torah, good; and if not, I will return you to emptiness and void.*
>
> Avodah Zarah 5a (Reish Lakish on Bereishis 1:31)

G-d made a condition with the work of creation: if Israel accept the Torah, the world will stand; if not, it will return to emptiness. The elevation of Sinai was conditional, and so is the world. This is the setting in which the psalm speaks to judges. Their elevation is part of that larger condition. If they judge truly, they hold up the world, as Malbim taught on verse 5. If not, they fall like the first man.

The Metzudos make the link to judgment explicit. G-d's promise was made "when I commanded you concerning the laws." The laws themselves were the means of elevation, and the failure to keep them was the means of the fall.

> אני אמרתי. אמר בשם ה' הנה כאשר צויתי אתכם על הדינים אמרתי אז שבעבורם תהיו כמלאכים ולא תשלוט בכם המיתה: ובני עליון. כפל הדבר במ"ש: אכן. באמת הואיל ואין אתם נזהרים בה תמותו כמו שמת אדם הראשון על שלא נזהר במצותי:
>
> *"I said": he speaks in the name of Hashem: when I commanded you concerning the laws, I said then that through them you would be like angels and death would not rule over you. "And children of the Most High": the matter is doubled, in other words. "Yet": in truth, since you are not careful with it, you will die as Adam the first man died, because he was not careful with My commandment.*
>
> Metzudas David on Tehillim 82:6–7

Midrash Tehillim reads the verse with Adam alone, and adds the image of expulsion.

אני אמרתי אלקים אתם וגו'. מצוה אחת צויתי לאדם ולא עמד בה וגרשתיו מיד שנאמר (בראשית ג כד) ויגרש את האדם. אכן כאדם תמותון וכאחד השרים תפולו. אלו שרים של מעלה שנאמר (ישעיה כד כא) יפקוד ה' על צבא מרום במרום. קומה אלקים שפטה הארץ כי אתה תנחל. העבר את אלו ותהא אתה מולך במשפט ושופט עליהם שנאמר (תהלים ט ח) וה' לעולם ישב כונן למשפט כסאו:

"I said, you are godly beings." One commandment I commanded Adam, and he did not stand by it, and I drove him out at once, as it says (Bereishis 3:24), "He drove out the man." "Yet you will die like a man, and fall like one of the princes": these are the princes on high, as it says (Yeshayahu 24:21), "Hashem will punish the host of the heights on high." "Arise, O G-d, judge the earth, for You inherit": remove these, and You reign in justice and judge over them, as it says (Tehillim 9:8), "Hashem sits enthroned forever; He has established His throne for judgment."

Midrash Tehillim 82:3

One commandment was given to Adam, and when he did not stand by it, he was driven out at once. The Midrash does not soften it: "at once." And it reads "like one of the princes" as the princes on high, the heavenly powers whom Yeshayahu says G-d will punish. Even the princes of heaven fall when they fail their charge.

Elokim in truth

Radak gives the verse its most exact form. "Judges are called elohim when they are judges of truth."

אני אמרתי אלקים אתם. כי השופטים נקראו אלקים כשהם שופטי אמת אני אמרתי שתהיו אלקים באמת ותדמו לבני עליון שתקראו גם כן אלקים שהם מלאכים ותשפטו: אכן. אני רואה במעשיכם שתשחיתו מעלת נשמתכם וכשתמותון תמותון כאחד האדם ותמות נשמתכם עם הגוף שהוא אדם ולא תעלה עם בני עליון: וכאחד השרים. שהם שופטים ונוהגים בני אדם כפי גאותם וגדולתם ומבזים השפלים בבני אדם ועושקים אותם כן תפולו אתם כשתמותון:

"I said, you are godly beings": for judges are called elohim when they are judges of truth. I said that you would be elohim in truth and resemble the children of the Most High, so that you too would be called elohim, as the angels are, and would judge. "Yet": I see in your deeds that you will ruin the high station of your soul, and when you die you will die like any man, and your soul will die with the body, which is [mere] man, and will not rise with the children of the Most High. "And like one of the princes": who judge and lead people according to their pride and greatness, and despise the lowly among men and oppress them; so you will fall when you die.

Radak on Tehillim 82:6–7

The name is not a title the judge keeps whatever he does. It is a description of what he is doing when he judges truly. Radak continues: "I said that you would be elohim in truth."

The phrase is conditional, and the condition is truth. When the judges ruin their deeds, they lose the name and become “like any man.” They die, and their soul does not rise with the children of the Most High.

Radak then reads “like one of the princes” as rulers who lead “according to their pride and greatness, and despise the lowly among men and oppress them.” The judges who were meant to be like angels have become like the proud princes of the earth.

Ibn Ezra puts it as a contrast between soul and body.

אני - מושב אלקים ישבתם. ובני עליון - כמלאכים. אכן - אין אתם רק כאדם תמותון. והטעם: כי נשמתכם כנשמת המלאכים והנה אינכם רק כגופות תמותון. וכאחד השרים - המתגברים ועושים חמס וככה דרך שרים וכל שופטי ארץ.

> *“I said”: you sat in the seat of G-d. “And children of the Most High”: like angels. “Yet”: you are nothing but men; you will die. The meaning: your soul is like the soul of the angels, and yet you are only like bodies that die. “And like one of the princes”: those who overpower and do violence; and such is the way of princes and of all the judges of the land.*
>
> Ibn Ezra on Tehillim 82:6–7

“You sat in the seat of G-d.” Your soul is like the soul of the angels, and yet you are only bodies that die. And “the princes” are “those who overpower and do violence; and such is the way of princes and of all the judges of the land.” Ibn Ezra’s last phrase is severe. He does not say that some judges are like violent princes. He says it is the way of the judges of the land, unless they remember whose seat they sit in.

Partners in creation, and the height of the fall

Malbim gives verse 6 a political reading that goes beyond the others.

אני, מצייר שכמו שהיה צריך פועל אלקים ומעשהו לבריאת האדם והעולם, כן צריך משפט ושופטים להעמדת האדם והעולם וקיומם, כי אחר שהאדם מדיני בטבע א"א שלא יקרה ביניהם ריבים ודינים עושק וחמס אשר יבטל הקיבוץ וישוב העולם בכלל אם לא ימצא ביניהם נימוס ומשפט ושופטים, ומצד זה ידמה אותם כאלו הם אלקים יוצרי העולם, כי הם שותפים עמו בזה, שהוא ברא את העולם והם המקיימים אותו, וכמ"ש כל דיין הדן דין אמת לאמתו נעשה שותף להקב"ה במ"ב

"I said": he pictures that just as the work of G-d was needed for the creation of man and the world, so judgment and judges are needed for the establishing and sustaining of man and the world. For since man is political by nature, it is impossible that quarrels and lawsuits, oppression and violence will not arise among people, which would undo society and the settlement of the world altogether, unless law, judgment and judges are found among them. From this side he likens them to elohim, makers of the world, for they are partners with Him in this: He created the world and they sustain it, as [the Sages] said: every judge who judges a true judgment truthfully becomes a partner of the Holy One, blessed be He, in the work of creation.

Malbim on Tehillim 82:6

Man is political by nature, says Malbim, and so quarrels, lawsuits, oppression and violence will always arise. Without law and judges, society would come apart. That is why judges are called elohim: G-d created the world, and the judges sustain it. He cites the teaching of Shabbos 10a that we read in Chapter Three. A judge who judges truly becomes G-d's partner in creation.

Then he reads verse 7 as the measure of the fall.

אכן ראיתי, כי כאדם תמותון, אחר שהפכתם ללענה משפט, רק בזה תדמו לבני עליון, כי כאחד השרים העליונים תפולו, שידמה כאלו נפלתם משמים ארץ מעליון למטה שתגדל הנפילה כפי המעלה שנפל ממנה עד כאן דבר ה' אל השופטים:

"Yet": I have seen that you will die like a man, since you have turned judgment into wormwood; only in this will you resemble the children of the Most High: that you will fall like one of the princes on high, as though you had fallen from heaven to earth, from on high to below, so that the fall is as great as the height from which one fell. Here ends the word of Hashem to the judges.

Malbim on Tehillim 82:7

The judges will resemble the children of the Most High in only one way: they will fall like the princes on high, "as though you had fallen from heaven to earth, from on high to below, so that the fall is as great as the height from which one fell." And Malbim adds a line that closes the first part of the psalm: "Here ends the word of Hashem to the judges." What follows, in verse 8, is the psalmist's own prayer.

A charge, not a status

Put these readings together and they make a single claim. Office in the Torah is a charge, not a status. The judge is called elohim because of what he does. He is elevated because he holds up the world. He keeps his elevation only as long as he keeps the charge. When he fails, he falls further than an ordinary man, because he stood higher.

The halachah draws the practical conclusions. A judge who buys his appointment has bought nothing.

> כל דין שנתן ממון כדי שיתמנה אסור לעמד מפניו. וצוו חכמים להקל אותו ולזלזל בו. ואמרו חכמים שהטלית שמתעטף בה תהי בעיניך כמרדעת של חמור
>
> *Any judge who gave money in order to be appointed, it is forbidden to stand up for him, and the Sages commanded to treat him lightly and disparage him. And the Sages said: The tallis in which he wraps himself should be in your eyes like a donkey's saddle-cloth.*
>
> Rambam, Hilchos Sanhedrin 3:9

The Sages commanded that no one stand for him, and that his tallis be regarded as a donkey's saddle-cloth. The robe of office does not make the judge. A judge who sees it as a possession has already lost it.

The true sages fled from appointment.

> כך היה דרך חכמים הראשונים בורחין מלהתמנות. ודוחקין עצמן הרבה שלא ישבו בדין עד שידעו שאין שם ראוי כמותם ושאם ימנעו מן הדין תקלקל השורה. אף על פי כן לא היו יושבין בדין אלא עד שמכבידין עליהם את העם והזקנים ופוצרים בהן
>
> *Such was the way of the early Sages: they fled from being appointed, and pressed themselves hard not to sit in judgment until they knew that there was no one as fit as they, and that if they held back from judging, the line would be spoiled. Even so, they would not sit in judgment until the people and the elders pressed upon them and urged them.*
>
> Rambam, Hilchos Sanhedrin 3:10

They did not sit in judgment until they knew no one else was as fit, and that if they refused, the line would be spoiled. Even then they waited until the people and the elders pressed them. This is the opposite of ambition. A man who wants to be a judge for the sake of being a judge is the man who should not be one.

The Mishnah gives the same teaching from two sides.

החושך עצמו מן הדין, פורק ממנו איבה וגזל ושבועת שוא. והגס לבו בהוראה, שוטה רשע וגס רוח

[Rabbi Yishmael son of Rabbi Yosei says:] One who holds himself back from judging removes from himself enmity, robbery and a needless oath. And one whose heart is haughty in giving rulings is a fool, wicked and arrogant of spirit.

Avos 4:7

שמעיה אומר, אהב את המלאכה, ושנא את הרבנות, ואל תתודע לרשות

Shemayah says: Love work, hate lordship, and do not make yourself known to the ruling power.

Avos 1:10

Rabbi Yishmael son of Rabbi Yosei says that one who holds back from judging spares himself enmity, robbery and needless oaths, and one who is haughty in giving rulings is a fool, wicked and arrogant. Shemayah says: love work, hate lordship. The Sages do not despise judges. They despise the love of lordship, which turns a charge into a possession.

The qualities Rambam requires of every judge, even in a court of three, include humility.

בית דין של שלשה אף על פי שאין מדקדקין בהן בכל אלו הדברים צריך שיהא בכל אחד מהן שבעה דברים ואלו הן. חכמה. וענוה. ויראה. ושנאת ממון. ואהבת האמת. ואהבת הבריות להן. ובעלי שם טוב

A court of three, even though it is not examined in all these matters, must have in each of its members seven things, and these are they: wisdom, humility, fear [of Heaven], hatred of money, love of truth, the love of people for them, and a good name.

Rambam, Hilchos Sanhedrin 2:7 (opening)

Humility stands second, after wisdom. A judge who believes he is elohim by nature has forgotten Radak's condition: "when they are judges of truth."

The Ran: a servant, not a master

The Ran, in his eleventh Derashah, makes the same point about the king.

נמצא שאין המלכות דבק עם המלך אבל תואר נוסף עליו לצורך תיקון הכלל ולכן אין ראוי למלך שיראה עצמו כמושל ושליט על העם אבל כעבד עליהם לצרך תקונם לצורך תיקונם. ומפני זה אמרו בהוריות (י.-י:) כסבורים ששררות אני נותן לכם. עבדות אני נותן לכם

It turns out that kingship is not attached to the king; it is a title added to him for the repair of the whole. Therefore it is not fitting for a king to see himself as master and ruler over the people, but as a servant to them, for their repair. And for this reason they said in Horayos (10a–b): "You think I am giving you rulership? I am giving you servitude."

Derashos HaRan, Derush 11

"Kingship is not attached to the king; it is a title added to him for the repair of the whole." The king is not master over the people but a servant to them. The Ran quotes Horayos: "You think I am giving you rulership? I am giving you servitude."

Tehillim 82:6–7 says this about judges. The office is "added to" the man for the sake of the people. It is not part of him. When he forgets that, the office leaves him, and he is left as what he always was: a man, who will die like Adam.

This is the heart of the psalm's political teaching, and it will return in Chapter Eight. No office in Israel is a possession. Every office is a charge given for the repair of the whole, and held only as long as it is carried out. That is as true of a court as of a king, and as true of a legislature or a legal adviser as of either.

For the table

1. Rashi reads verse 6 as the elevation of Sinai, when death was meant to cease. What does it mean that the psalm addresses that promise to judges?
2. Avodah Zarah 5a says Israel accepted the Torah only so that no nation could rule over them. How is that a political statement?
3. Malbim reads "like one of the princes" as a fall from a height. Why is the fall of the elevated worse than the fall of the ordinary?
4. Rambam lists the qualities of a judge, including humility. Can an institution teach humility, or only select for it?
5. If office is a charge, not a status, what follows for how long anyone should hold it?

CHAPTER VI

“Not for Man but for Hashem”

Yehoshafat and the traditional models of the court (Divrei HaYamim II 19)

Radak suggests that Tehillim 82 was said in the days of Yehoshafat. Divrei HaYamim II 19 shows what that king did: he went out among the people, set judges in every fortified city, set a court in Jerusalem, and charged both. This chapter reads his charge with Rashi and Radak, sets it beside Yisro’s counsel and Moshe’s appointments, and follows Rambam on how a Torah court is structured.

The king who went out among the people

Radak and Malbim both suggest that Tehillim 82 belongs to the days of Yehoshafat. Malbim says so at the opening of his commentary, on the evidence of the order of the psalms.

> מזמור לאסף, הוסד נגד השופטים המטים משפט, וכפי סדר המזמורים נראה שגם שיר זה (כמו השיר שאח"ז) נתקן בימי יהושפט שהעמיד שופטים בכל עיר ועיר והזהיר אותם, דעו מה אתם עושים כי לא לאדם תשפטו כי לה' ועמכם בדבר המשפט, ועתה יהי פחד ה' עליכם (דברי הימים ב י"ט:ו'-ז')
>
> *“A psalm of Asaf”: it was founded against the judges who pervert judgment. And according to the order of the psalms, it appears that this song too (like the song after it) was composed in the days of Yehoshafat, who appointed judges in every city and warned them: “Know what you are doing, for you judge not for man but for Hashem, and He is with you in the matter of judgment; and now, let the fear of Hashem be upon you” (Divrei HaYamim II 19:6–7).*
>
> Malbim on Tehillim 82:1 (opening)

Whether or not the psalm was composed in his time, Yehoshafat’s reform is the clearest model the Tanach gives of what a king does when he takes the psalm seriously. It is told in Divrei HaYamim II 19, and it has four parts: he goes out among the people, he appoints judges in the cities, he charges them, and he sets up a court in Jerusalem with a clear division of authority.

וישב יהושפט בירושלם וישב ויצא בעם מבאר שבע עד־הר אפרים וישיבם אל־ה' אלקי אבותיהם ויעמד שפטים בארץ בכל־ערי יהודה הבצרות לעיר ועיר

Yehoshafat dwelt in Jerusalem; and he went out again among the people from Be'er Sheva to the hill country of Efrayim, and brought them back to Hashem, the G-d of their fathers. He appointed judges in the land, in all the fortified cities of Judah, city by city.

Divrei HaYamim II 19:4–5

The first thing Yehoshafat does is not an appointment. He goes out among the people, from Be'er Sheva in the south to the hill country of Efrayim in the north, and brings them back to Hashem. Only after that does he appoint judges. The order matters. A court cannot make a people just. It can only judge a people that has already accepted the law it applies. Yehoshafat restores the covenant first and the courts second.

Rashi explains why he acted at that moment, and why he appointed the judges he did.

וגם ראה שם כתוב "שפטים ושטרים תתן לך" (דברים טז:יח), מיד ויעמד שפטים מחזקים בכל ערי יהודה לעיר ועיר:

And he also saw written there, "Judges and officers you shall appoint for yourself" (Devarim 16:18); at once, "he appointed judges," strong ones, in all the cities of Judah, city by city.

Rashi on Divrei HaYamim II 19:5 (closing lines)

He saw the verse "judges and officers you shall appoint," and he acted "at once." The Torah's command to appoint judges was not new. What was new was a king who read it and did it.

בכל ערי יהודה הבצרות. העמיד מוחזקים, להכריחם ולכופן לדין מתחלה; ושוב העמיד שופטים שאינן מוחזקים כל כך לעיירות שאינן בצורות, לפי שהן יראים להיות סרבנים יותר מאותן היושבים בערים בצורות, שבוטחים בערי מבצרם

"In all the fortified cities of Judah": he appointed strong [judges], to compel them and force them to judgment from the start; and then he appointed judges who were not as strong for the cities that were not fortified, because those [residents] are more afraid to be defiant than those who live in fortified cities, who trust in their strongholds.

Rashi on Divrei HaYamim II 19:5

Rashi adds a detail of institutional design. In the fortified cities, whose residents trusted their walls and were bolder in defying authority, Yehoshafat set strong judges, able to compel. In the open towns, whose residents were more afraid, he set judges who were not as strong. The court was fitted to the people it had to serve. Strength was given where strength was needed, and not elsewhere.

The charge

Yehoshafat's charge to the judges is the verse the Sages joined to Tehillim 82:1. We have met it already in Sanhedrin 6b, Midrash Tehillim and Rambam.

ויאמר אל־השפטים ראו מה־אתם עשים כי לא לאדם תשפטו כי לה' ועמכם בדבר משפט ועתה יהי פחד־ה' עליכם שמרו ועשו כי־אין עם־ה' אלקינו עולה ומשא פנים ומקח־שחד

He said to the judges: See what you are doing, for you judge not for man but for Hashem, and He is with you in the matter of judgment. And now, let the fear of Hashem be upon you; take care and act, for with Hashem our G-d there is no iniquity, no lifting of faces and no taking of a bribe.

Divrei HaYamim II 19:6–7

Rashi expands it into a speech.

כי לא לאדם תשפטו. פתרון: אל תחשבו בלבבכם לומר: מה לנו אם אנו מטים את הדין לזכות את אוהבינו, להטות דין דלים ולשא פני עשירים, הלא אין המשפט לה'; לכך נאמר לה', שלו הוא, אם חיבת את הזכאי, כאלו נטלת ולקחת משל בוראך ודין שמים עקלת לתת משפט מעקל. לפיכך תראו מה שתעשו, והיה לבבכם בכל דין ודין כאלו הקדוש ברוך הוא עומד לפניכם בדין, וזהו ועמכם בדבר משפט. ובסנהדרין (סנהדרין ו:) מפרש מה אתם עושים? כי לא לאדם תשפטו כי לה'; ושמא יאמר הדין: מה לי ולצער הזה, תלמוד לומר: ועמכם בדבר משפט, כלומר מוטל עליכם לעשות ואין לו לדין לעשות אלא מה שעיניו רואות

"For you judge not for man": the explanation: do not think in your hearts, saying, "What does it matter to us if we bend judgment to acquit our friends, to bend the judgment of the poor and lift up the faces of the rich?", as though judgment were not Hashem's. Therefore it says "for Hashem": it is His. If you have convicted the innocent, it is as though you took and seized from your Creator and twisted the judgment of Heaven, to give a crooked judgment. Therefore, see what you do, and let your heart in every single case be as though the Holy One, blessed be He, were standing before you in judgment; and this is "He is with you in the matter of judgment." And in Sanhedrin (6b) it explains "what you are doing": "for you judge not for man but for Hashem"; and lest the judge say, "What have I to do with this anguish?", the verse says, "He is with you in the matter of judgment," that is, it is placed upon you to act, and the judge has only to act according to what his eyes see.

Rashi on Divrei HaYamim II 19:6

Rashi imagines the judges' temptation in their own words: what does it matter to us if we bend judgment to acquit our friends, to bend the judgment of the poor and lift up the faces of the rich? It is the language of verse 2 of the psalm. And Rashi answers it with the language of Devarim: the judgment is Hashem's. A judge who convicts the innocent "took

and seized from his Creator." So in every single case, the judge should feel as though the Holy One were standing before him in judgment.

That last phrase is a reading of Tehillim 82:1 in the mouth of Yehoshafat. G-d stands in the assembly. The judge must feel Him standing there.

Rashi then reads the next verse as a statement about G-d's own character.

> אין עם ה' אלקינו עולה ומשא פנים ומקח שחד. והוא עמכם במשפט, לפיכך אינו רוצה שתעשו עול במשפט (ויקרא יט:טו)

> *"With Hashem our G-d there is no iniquity, no lifting of faces and no taking of a bribe": and He is with you in judgment; therefore He does not want you to do iniquity in judgment (Vayikra 19:15).*
>
> Rashi on Divrei HaYamim II 19:7

"With Hashem our G-d there is no iniquity, no lifting of faces and no taking of a bribe." The three things Yehoshafat names are exactly the failures of Tehillim 82:2 and 5. Since G-d is "with you in judgment," He does not want His partners to do what He Himself never does.

Radak gives two readings of "He is with you in the matter of judgment."

> ועמכם בדבר משפט. פי': ועמכם יהי השם בדבר משפט, כלומ' שתיראו ממנו כאלו הוא עמכם בדבר משפט. או פרושו: יהיה עמכם ויעזר אתכם בדבר משפט אם תיראו ממנו

> *"He is with you in the matter of judgment": the explanation: Hashem will be with you in the matter of judgment, that is, that you should fear Him as though He were with you in the matter of judgment. Or its explanation is: He will be with you and help you in the matter of judgment, if you fear Him.*
>
> Radak on Divrei HaYamim II 19:6

Either the judge should fear G-d as though G-d were sitting with him, or G-d will truly be with him and help him, if he fears Him. The first reading is a warning. The second is a promise. Sanhedrin 6b used the same phrase as a comfort: "a judge has only what his eyes see." The verse holds all three at once. G-d is present, watching. G-d is present, helping. And G-d asks only for what the judge can see.

Sifrei joins Yehoshafat's charge to Moshe's command, "you shall not fear any man," and it gives the fear a concrete shape.

לא תגורו מפני איש, שמא תאמר: מתירא אני מפלוני שמא יהרג את בני, או שמא ידליק את גדישי, או שמא יקצץ את נטיעותי – תלמוד לומר: לא תגורו מפני איש כי המשפט לאלקים הוא. וכן יהושפט אומר (דברי הימים ב יט ו): "ויאמר אל השופטים ראו מה אתם עשים כי לא לאדם תשפטו כי לה'"

"You shall not fear any man": lest you say, "I am afraid of so-and-so, lest he kill my son, or set fire to my grain-stack, or cut down my saplings"; the verse says, "You shall not fear any man, for the judgment is G-d's." And so Yehoshafat says (Divrei HaYamim II 19:6): "He said to the judges: See what you are doing, for you judge not for man but for Hashem."

Sifrei Devarim 17 (on Devarim 1:17)

The judge is afraid that a powerful litigant will kill his son, burn his grain or cut down his trees. The Torah answers that the judgment is G-d's. This is not naïve. The Sifrei knows that judges can be threatened. Its answer is that a judge who knows for Whom he judges has a reason to stand that no threat can remove.

The court in Jerusalem

Yehoshafat then sets up a central court.

וגם בירושלם העמיד יהושפט מן־הלוים והכהנים ומראשי האבות לישראל למשפט ה' ולריב וישבו ירושלם ויצו עליהם לאמר כה תעשון ביראת ה' באמונה ובלבב שלם

And in Jerusalem too Yehoshafat appointed some of the Levites and the kohanim and the heads of the fathers' houses of Israel, for the judgment of Hashem and for disputes; and they returned to Jerusalem. He commanded them, saying: Thus you shall do: in the fear of Hashem, in faithfulness and with a whole heart.

Divrei HaYamim II 19:8–9

It is staffed by Levites, kohanim and heads of families, for "the judgment of Hashem and for disputes." They are to judge "in the fear of Hashem, in faithfulness and with a whole heart." Their task includes the guidance of the lower courts.

וכל־ריב אשר־יבוא עליכם מאחיכם הישבים בעריהם בין־דם לדם בין־תורה למצוה לחקים ולמשפטים והזהרתם אתם ולא יאשמו לה' והיה־קצף עליכם ועל־אחיכם כה תעשון ולא תאשמו

And every dispute that comes to you from your brothers who dwell in their cities, between blood and blood, between Torah and commandment, statutes and judgments, you shall warn them, so that they not incur guilt before Hashem and wrath come upon you and upon your brothers. Thus you shall do, and you will not incur guilt.

Divrei HaYamim II 19:10

When cases come up from the cities, the Jerusalem court is to warn the judges there, so that they do not sin. Rashi explains the reward: the court that delivers the warning has done its duty.

> ולא תאשמו. אותם מכל מקום, שאם תקבלו את האזהרה לא יהיה לכם קצף, ואף לא יהיה בשום דבר אשם עליכם, הואיל ועשיתם חובתכם המוטל עליכם לעשות
>
> *"And you will not incur guilt": in any case; for if you deliver the warning, there will be no wrath upon you, nor will there be any guilt upon you in anything, since you have done your duty, which is placed upon you to do.*
>
> Rashi on Divrei HaYamim II 19:10

This is a system of review and instruction. The higher court does not take over the lower courts' cases. It warns, it teaches and it answers questions, and when it has done that, its duty is fulfilled.

The last verse gives the court a dual leadership.

> והנה אמריהו כהן הראש עליכם לכל דבר־ה' וזבדיהו בן־ישמעאל הנגיד לבית־יהודה לכל דבר־המלך ושטרים הלוים לפניכם חזקו ועשו ויהי ה' עם־הטוב
>
> *And here is Amaryahu the chief kohen over you in every matter of Hashem, and Zevadyahu son of Yishmael, the leader of the house of Judah, in every matter of the king; and the Levites as officers before you. Be strong and act, and may Hashem be with the good.*
>
> Divrei HaYamim II 19:11

Amaryahu the chief kohen presides "in every matter of Hashem." Zevadyahu, the leader of the house of Judah, presides "in every matter of the king." The Levites are the officers. Two domains, two heads, one court. Yehoshafat does not merge the king's affairs into the Torah's, or the Torah's into the king's. He assigns each its own head. We will see in Chapter Eight that the Ran builds a whole political theory on this distinction.

And then the last words: "Be strong and act, and may Hashem be with the good." Honesty is not enough. A judge needs courage.

Yisro and Moshe

Yehoshafat's reform has a precedent in the Torah. When Moshe sat alone judging the people from morning to evening, Yisro told him that he would wear himself out, and proposed a system of judges.

> ויהי ממחרת וישב משה לשפט את־העם ויעמד העם על־משה מן־הבקר עד־הערב
>
> *It was on the next day: Moshe sat to judge the people, and the people stood about Moshe from the morning until the evening.*
>
> Shemos 18:13

> ואתה תחזה מכל־העם אנשי־חיל יראי אלקים אנשי אמת שנאי בצע ושמת עלהם שרי אלפים שרי מאות שרי חמשים ושרי עשרת
>
> *And you shall seek out from all the people capable men, G-d-fearing, men of truth, who hate gain; and set them over them as officers of thousands, officers of hundreds, officers of fifties and officers of tens.*
>
> Shemos 18:21

Yisro names four qualities: capable men, G-d-fearing, men of truth, who hate gain. Moshe, recalling the appointments in Devarim, names three more: wise, understanding, and known to the tribes.

> הבו לכם אנשים חכמים ונבנים וידעים לשבטיכם ואשימם בראשיכם
>
> *Provide for yourselves men who are wise, understanding and known to your tribes, and I will set them as your heads.*
>
> Devarim 1:13

“Known to your tribes.” The people are to bring forward the candidates, and Moshe appoints them. The judges are not chosen by the people alone or by Moshe alone. They come from the people, and they are set in place by the leader.

Rambam’s seven qualities

Rambam gathers Yisro’s and Moshe’s lists into the seven qualities we met in Chapter Five: wisdom, humility, fear of Heaven, hatred of money, love of truth, the love of people for them, and a good name. Every judge must have them, even in a court of three. And he explains what “capable men” means.

ולהלן הוא אומר (שמות יח כא) "אנשי חיל" אלו שהן גבורים במצות ומדקדקים על עצמם וכובשין את יצרן עד שלא יהא להן שום גנאי ולא שם רע ויהא פרקן נאה. ובכלל אנשי חיל שיהיה להן לב אמיץ להציל עשוק מיד עושקו כענין שנאמר (שמות ב יז) "ויקם משה ויושען"

And further on it says (Shemos 18:21), "capable men": these are mighty in the commandments, exacting with themselves, who conquer their impulse until there is no disgrace and no bad name about them, and their youth was fine. And included in "capable men" is that they have a courageous heart to rescue the oppressed from the hand of his oppressor, as it says (Shemos 2:17), "Moshe rose up and saved them."

Rambam, Hilchos Sanhedrin 2:7 (middle)

They are mighty in the commandments, exacting with themselves, masters of their impulses, with no disgrace about them, "and their youth was fine." And "included in 'capable men' is that they have a courageous heart to rescue the oppressed from the hand of his oppressor." That is Tehillim 82:4 turned into a qualification for office. Courage to rescue the weak is part of what makes a man fit to be a judge.

Rambam also describes how the Great Court found its judges.

אמרו חכמים שמבית דין הגדול היו שולחים בכל ארץ ישראל ובודקין כל מי שימצאוהו חכם וירא חטא וענו ושפוי ופרקו נאה ורוח הבריות נוחה הימנו. עושין אותו דין בעירו. ומשם מעלין אותו לפתח הר הבית ומשם מעלין אותו לפתח העזרה. ומשם מעלין אותו לבית דין הגדול

The Sages said that from the Great Court they would send throughout the Land of Israel and examine everyone they found who was wise, fearful of sin, humble, of settled mind, of fine youth, and with whom people were at ease. They would make him a judge in his city; from there they would raise him to the gate of the Temple Mount, from there to the gate of the Courtyard, and from there to the Great Court.

Rambam, Hilchos Sanhedrin 2:8

Messengers went through the land to find men who were wise, fearful of sin, humble, settled in mind, of fine youth and liked by people. They were made judges in their own towns, and then raised step by step, to the gate of the Temple Mount, to the gate of the Courtyard, and finally to the Great Court. This is a career built on proven service. No one reached the highest court without first judging in a small one, among people who knew him.

The judge who needs nothing

Sanhedrin 7b gives a last image of the model judge.

כי אתא רב דימי אמר: דרש רב נחמן בר כהן, מאי דכתיב: "מלך במשפט יעמיד ארץ ואיש תרומות יהרסנה"? אם דיין דומה למלך שאינו צריך לכלום – יעמיד ארץ, ואם דומה לכהן שמחזר בבית הגרנות – יהרסנה.

> *When Rav Dimi came, he said: Rav Nachman bar Kohen expounded: What is meant by "A king by justice establishes the land, but a man of levies tears it down" (Mishlei 29:4)? If the judge is like a king, who needs nothing, he establishes the land; and if he is like a kohen who goes around the threshing floors [for his gifts], he tears it down.*
>
> Sanhedrin 7b

"If the judge is like a king, who needs nothing, he establishes the land; and if he is like a kohen who goes around the threshing floors, he tears it down." The kohen who goes around the threshing floors is asking for his gifts. He is dependent, and a dependent judge will lean. The judge must be in a position where no litigant can give him anything he needs.

The model

Yehoshafat's reform gives us a model in five lines. First, restore the people's covenant before building the courts. Second, appoint judges in every city, fitted to the place. Third, charge them that they judge for Hashem, not for man, and that He is with them. Fourth, set a higher court to warn and teach, not to swallow the lower courts. Fifth, divide the matters of Hashem from the matters of the king, each with its own head.

Behind that model stand Yisro's qualities, Moshe's appointments from among the tribes, Rambam's seven qualities and his ladder of service, and the Gemara's judge who needs nothing. None of these sources describes a modern state. All of them describe what a court should be. The next chapter asks how a modern state's choices look when they are measured against them.

For the table

1. Yehoshafat went out among the people before he appointed judges. Why does that order matter?
2. The Jerusalem court had two heads: a kohen for "matters of Hashem" and a prince for "matters of the king." What does that division teach?
3. Yisro asks for men of truth who hate gain. Rambam lists seven qualities. Which of them can be checked by an appointing body?
4. Sanhedrin 7b condemns appointing an unfit judge for his wealth. What other "silver and gold" might qualify a judge in a modern system?

5. Yehoshafat ends “Be strong and act, and Hashem will be with the good.” Why does a judge need courage as well as honesty?

CHAPTER VII

The Seat Beside the Judges

Contemporary structural questions, as of 10 November 2026

This chapter asks what Tehillim 82 says about three structural questions argued in Israel in recent years: how judges are chosen, what the government's chief legal adviser may bind, and whether the legislature may override the court. It names no person and argues for no side. It asks every proposal the same four questions, and those questions come from the psalm.

About the seat, not the person

Tehillim 82 does not name a single judge. It speaks to "the judges" as a body, and it measures them by what they do with the seat they hold. This chapter follows that discipline. It describes structures and principles, as they stood on 10 November 2026. It names no sitting judge, legal adviser, minister or party, and it imputes no motive to anyone. The laws of speech that the Chafetz Chaim gathered apply to public argument as much as to private conversation, and an argument about courts is not improved by suspicion of the people who sit in them or who wish to change them.

The chapter does not argue for any side. It asks every arrangement the same four questions, drawn from the first five chapters of this booklet.

- **Is the Divine standing visible?** Does the institution know that it is itself under judgment, or has it come to believe that it "sits by itself"? (Chapter One)
- **Is the office a charge, not a status?** Is it held for the repair of the whole, and can it be lost when the charge is not kept? (Chapter Five)
- **Can the weak be heard?** Does the arrangement protect the dal and the yasom, or does it hand them to the strongest party in the room? (Chapters Two and Three)
- **Does accountability run in every direction, so that no office is supreme?** Is every power answerable to some other power, and all of them to the law above them? (Chapters Four and Six)

The facts in this chapter come from sources listed in the bibliography under "Contemporary sources." Two of them rest on a single news report and are marked accordingly.

The Torah speaks to the one who appoints

Before the Torah warns the judge, it warns the person who chooses him. Rashi reads "do not recognise faces in judgment" as addressed to the appointer.

> לא תכירו פנים במשפט. זה הממנה להושיב הדינים, שלא יאמר איש פלוני נאה או גבור, אושיבנו דין, איש פלוני קרובי, אושיבנו דין בעיר, והוא אינו בקי בדינין, נמצא מחיב את הזכאי ומזכה את החיב, מעלה אני על מי שמנהו כאלו הכיר פנים בדין
>
> *"Do not recognise faces in judgment": this is [addressed to] the one who appoints the judges, that he not say, "So-and-so is handsome or mighty, I will seat him as a judge; so-and-so is my relative, I will seat him as a judge in the city," when he is not expert in the laws; he will turn out to convict the innocent and acquit the guilty. I count it against the one who appointed him as though he had shown favour in judgment.*
>
> Rashi on Devarim 1:17

The Sifrei, Rashi's source, adds one more temptation to the list: "so-and-so lent me money."

> לא תכירו פנים במשפט – זה הממנה להושיב דינים. שמא תאמר: איש פלוני נאה, אושיבנו דין; איש פלוני גבור, אושיבנו דין; איש פלוני קרובי, אושיבנו דין; איש פלוני הלוני ממון [הליניסטון] אושיבנו דין; נמצא מזכה את החיב ומחיב את הזכי, לא מפני שהוא רשע אלא מפני שאינו יודע, מעלה עליו כאלו הכיר פנים בדין
>
> *"You shall not recognise faces in judgment": this is [addressed to] the one who appoints judges. Lest you say: So-and-so is handsome, I will seat him as a judge; so-and-so is mighty, I will seat him as a judge; so-and-so is my relative, I will seat him as a judge; so-and-so lent me money, I will seat him as a judge. It turns out that he acquits the guilty and convicts the innocent, not because he is wicked but because he does not know; [and Scripture] counts it against [the appointer] as though he had shown favour in judgment.*
>
> Sifrei Devarim 17 (on Devarim 1:17)

Rambam codifies it, and widens the circle of those who are bound. It is not only a king. It is "any Sanhedrin, or king, or Exilarch." Whoever has the power to appoint is commanded by this verse.

כל סנהדרין או מלך או ראש גולה שהעמידו להן לישראל דין שאינו הגון ואינו חכם בחכמת התורה וראוי להיות דין. אף על פי שהוא כלו מחמדים ויש בו טובות אחרות הרי זה שהעמידו עובר בלא תעשה. שנאמר לא תכירו פנים במשפט. מפי השמועה למדו שזה מדבר כנגד הממנה להושיב דינין. אמרו חכמים שמא תאמר איש פלוני נאה אושיבנו דין. איש פלוני גבור אושיבנו דין. איש פלוני קרובי אושיבנו דין. איש פלוני יודע בכל לשון אושיבנו דין. נמצא מזכה את החיב ומחיב את הזכאי לא מפני שהוא רשע אלא מפני שאינו יודע. לכך נאמר (דברים א יז) "לא תכירו פנים במשפט".

Any Sanhedrin, or king, or Exilarch who appointed for Israel a judge who is not fit and not wise in the wisdom of the Torah and worthy to be a judge, even though he is altogether delightful and has other good qualities, the one who appointed him transgresses a negative commandment, as it says, "Do not recognise faces in judgment." By tradition they learned that this speaks to the one who appoints judges. The Sages said: Lest you say, "So-and-so is handsome, I will seat him as a judge; so-and-so is mighty, I will seat him as a judge; so-and-so is my relative, I will seat him as a judge; so-and-so knows every language, I will seat him as a judge"; he will turn out to acquit the guilty and convict the innocent, not because he is wicked but because he does not know. Therefore it says (Devarim 1:17), "Do not recognise faces in judgment."

Rambam, Hilchos Sanhedrin 3:8 (first part)

The striking phrase in all three is "not because he is wicked but because he does not know." The unfit judge in this teaching is not corrupt. He is simply not expert. Yet his errors are counted against the one who appointed him "as though he had shown favour in judgment." The appointer's partiality, toward beauty, strength, family, money or languages, becomes the judge's injustice.

The Gemara gives the sin its full weight.

אמר ריש לקיש: כל המעמיד דיין על הציבור שאינו הגון, כאילו נוטע אשירה בישראל, שנאמר: "שפטים ושטרים תתן לך", וסמיך ליה: "לא תטע לך אשרה כל עץ". אמר רב אשי: ובמקום שיש תלמידי חכמים, כאילו נטעו אצל מזבח, שנאמר: "אצל מזבח ה' אלקיך"

Reish Lakish said: Whoever appoints over the community a judge who is not fit is as though he planted an asherah [an idolatrous tree] in Israel, as it says, "Judges and officers you shall appoint for yourself," and next to it, "You shall not plant for yourself an asherah of any tree" (Devarim 16:18, 21). Rav Ashi said: And in a place where there are Torah scholars, it is as though he planted it beside the altar, as it says, "beside the altar of Hashem your G-d."

Sanhedrin 7b

כתיב: "לא תעשון אתי אלקי כסף ואלקי זהב". אלקי כסף ואלקי זהב הוא דלא עבדי, הא דעץ שרי? אמר רב אשי: אלוק הבא בשביל כסף, ואלוק הבא בשביל זהב

It is written: "You shall not make with Me gods of silver and gods of gold" (Shemos 20:20). Is it only gods of silver and gold that one may not make, but of wood it is permitted? Rav Ashi said: [This refers to] an "elohim" [a judge] who comes because of silver, and an "elohim" who comes because of gold.

Sanhedrin 7b

An unfit judge is an asherah planted in Israel; where there are Torah scholars, it is planted beside the altar. And a judge who comes to office because of silver or gold is an "elohim of silver" and an "elohim of gold," the very thing the Torah forbids making beside G-d in the verses that follow the Ten Commandments. The language is chosen to shock: a corrupt appointment is idolatry in the court.

The judge, too, must look at the bench he joins.

ואסור לאדם חכם שישב בדין עד שידע עם מי ישב שמא יצטרף עם אנשים שאינן הגונים ונמצא בכלל קשר בוגדים לא בכלל בית דין

And it is forbidden for a wise man to sit in judgment until he knows with whom he sits, lest he join with people who are not fit and find himself part of a conspiracy of traitors and not part of a court.

Rambam, Hilchos Sanhedrin 2:14

כל שני תלמידי חכמים ששונאים זה את זה אסורין לישב בדין זה עם זה. שדבר זה גורם ליציאת משפט מעקל. מפני השנאה שביניהן דעת כל אחד נוטה לסתר דברי חברו

Any two Torah scholars who hate each other are forbidden to sit in judgment together, for this causes a crooked judgment to go out: because of the hatred between them, each one's mind leans to overturn his fellow's words.

Rambam, Hilchos Sanhedrin 23:7

A sage may not sit until he knows with whom he sits, lest he find himself in "a conspiracy of traitors and not a court." And two scholars who hate each other may not sit together, because each will lean to overturn the other. Rambam is describing the composition of a bench, not the virtue of a single man. A court is a body. Its members shape one another.

First question: how judges are chosen

Israel's judges have been chosen since 1953 by a nine-member committee: three justices of the Supreme Court, two government ministers, two members of the Knesset and two representatives of the Israel Bar Association. On Thursday, 27 March 2025, the Knesset passed a law that changes the committee. The two Bar representatives are replaced by

two public representatives, one chosen by the coalition and one by the opposition, each of whom must be qualified to serve on the Supreme Court. An appointment to the Supreme Court, which had required seven of the nine votes, now requires five, including at least one member from the coalition side and one from the opposition side; an appointment to the lower courts requires a coalition member, an opposition member and a judge. The law includes a mechanism for breaking a deadlock when Supreme Court seats stay vacant for a year, and it requires that at least two thirds of the Supreme Court's justices have served first as district court judges. It was set to apply from the next Knesset, and it passed by 67 votes to 1. A petition against it was filed with the High Court of Justice.

> One news report states that the 26th Knesset was due to be sworn in on 10 November 2026, and that the amended selection rules were scheduled to take effect on that day. (Ynetnews, about 5 November 2026.)

How does the psalm measure such a committee? It does not tell a modern state how many seats to give to whom. It tells us what to look for.

The Torah places the first duty on the appointer, and it does not care who the appointer is: "any Sanhedrin, or king, or Exilarch." Whatever body chooses judges, it is bound by "do not recognise faces," and it answers for the errors of the judges it chooses. A committee that chooses judges for their closeness to its members, for their family, or for their usefulness to one camp, has made an elohim of silver, whatever the composition of the committee.

Moshe's appointments add a second principle. The judges were "known to your tribes," brought forward from among the people, and then set in place by the leader. Rambam's Great Court sent messengers through the land and raised judges step by step from their own towns. Neither source gives the choice to one hand alone.

Every design for a selection committee carries a risk on each side. Where the sitting judges hold an effective veto over who joins them, the danger is the one Midrash Tehillim names: "We sit by ourselves." A court that chooses its own successors can come to believe that it answers to no one. Where a political majority can fill the bench, the danger is the one Sanhedrin 7b names: the judge who comes "because of silver and because of gold," chosen for what he will give the appointer. The requirement in the 2025 law that a Supreme Court appointment carry at least one member from each side of the Knesset is one attempt to address the second danger. Whether it does so, and whether it creates others, is a question each reader must weigh by the four questions above.

The Mishnah gives the principle that sits under both dangers.

> אל תהי דן יחידי, שאין דן יחידי אלא אחד. ואל תאמר קבלו דעתי, שהן רשאין ולא אתה
>
> *Do not judge alone, for none judges alone but One. And do not say, "Accept my view," for they are entitled to, and not you.*
>
> Avos 4:8

"Do not judge alone, for none judges alone but One." Rambam applies it even to an expert permitted by law to sit alone: the Sages direct him to seat others with him.

> אחד שהיה ממחה לרבים או שנטל רשות מבית דין הרי זה מתר לו לדון יחידי אבל אינו חשוב בית דין. ואף על פי שהוא מתר מצות חכמים הוא שמושיב עמו אחרים שהרי אמרו אל תהי דן יחידי שאין דן יחידי אלא אחד
>
> *One who is a recognised expert for the public, or who received authorisation from the court, is permitted to judge alone, but he is not considered a court. And even though it is permitted, it is a directive of the Sages that he seat others with him, for they said, "Do not judge alone, for none judges alone but One."*
>
> Rambam, Hilchos Sanhedrin 2:11

The rule is addressed to a judge. It applies just as well to an institution. No single body, judicial or political, should hold the sole power to decide who will judge. Only One judges alone.

Second question: the government's legal adviser

Israel's Attorney General, as described by the Israel Democracy Institute in April 2026, heads the criminal prosecution, represents the state and the public interest in court, and advises the governing authorities "as the authorized interpreter of the law." Proposals to divide the office into several offices have been debated for many years. Those who favour a division have pointed to the concentration of powers in one office, to its workload, and to the tension between prosecuting members of the executive and advising that same executive. Those who oppose it have pointed to the risk of weakening the independence and professionalism of the office.

The most recent public commission to examine the office in depth, the Shamgar Commission, submitted its recommendations in November 1998. It recommended against dividing the role. It proposed that the Attorney General be chosen through a five-member public-professional committee whose recommendation needs four of the five votes, that the term be six years, and that the government may end the term in consultation with that committee on defined grounds, among them disagreements between the government and the Attorney General that prevent effective cooperation. In

December 2025 the Knesset Constitution, Law and Justice Committee took up bills to divide the role.

> One news report states that a law which took effect in January 2026 provides that the Attorney General's legal opinions are not binding on the government and allows ministers to obtain independent legal representation in court. (Ynetnews, about 5 November 2026.)

The Torah has no attorney general. But it has a theory of the two tracks of law, and the Ran sets it out in his eleventh Derashah.

ידוע הוא כי המין האנושי צריך לשופט שישפוט בין פרטיו, שאם לא כן איש את רעהו חיים בלעו ויהיה העולם נשחת, וכל אומה צריכה לזה ישוב מדיני

It is known that the human species needs a judge to judge between its individuals, for otherwise a man would swallow his neighbour alive and the world would be destroyed; and every nation needs this for political settlement.

Derashos HaRan, Derush 11

ואין ספק כי בכל אחד מהצדדים יזדמנו שני ענינים, האחד יחייב להעניש איזה איש כפי משפט אמיתי. והשני שאין ראוי להענישו כפי משפט צודק אמיתי אבל יחוייב להענישו כפי תקון סדר מדיני וכפי צורך השעה, וה' ית' ייחד כל אחד מהענינים האלו לכת מיוחדת, וצוה שיתמנו השופטים לשפוט המשפט הצודק האמיתית, והוא אמרו ושפטו את העם וגו', כלומר בא לבאר השופטים האלה לאיזה דבר יתמנו ובמה כחם גדול, ואמר שתכלית מנויים הוא כדי לשפוט את העם במשפט צדק אמיתי בעצמו ואין יכלתם עובר ביותר מזה. ומפני שהסדור המדיני לא ישלם בזה לבדו השלים הקל תיקונו במצות המלך

And there is no doubt that on each side two kinds of case arise: one in which a man ought to be punished according to true justice; and the other in which it is not fitting to punish him according to true and righteous justice, but he must be punished for the repair of the political order and the need of the hour. And Hashem, may He be blessed, assigned each of these matters to its own body, and commanded that judges be appointed to judge true and righteous justice; and this is what it says, "and they shall judge the people …"; that is, it comes to explain for what these judges are appointed and wherein their power is great, and it says that the purpose of their appointment is to judge the people with true righteous judgment in itself, and their capacity does not extend beyond this. And because political order would not be complete through this alone, G-d completed its repair through the commandment of the king.

Derashos HaRan, Derush 11

There are two kinds of case. In one, a man is judged by "true justice." In the other, he must be dealt with "for the repair of the political order and the need of the hour." The Torah gives each kind to its own body. The judges judge true justice, and "their capacity

does not extend beyond this." The king completes the political order. And the Ran is careful to add that the king, too, is bound.

שזה ההבדל בין השופט והמלך. שהשופט משועבד יותר למשפטי התורה מהמלך, ומפני זה הזהיר המלך וצוהו שיהא לו ספר תורה שני ויביא עמו, וזהו אמרו והיה כשבתו על כסא ממלכתו וכתב לו וגו' והיתה עמו וגו' לבלתי רום לבבו

... for this is the difference between the judge and the king: the judge is more bound to the laws of the Torah than the king. And for this reason [the Torah] warned the king and commanded him to have a second Torah scroll that he brings with him; and this is what it says, "And when he sits on the throne of his kingdom, he shall write for himself ..., and it shall be with him ..., so that his heart not be lifted up."

Derashos HaRan, Derush 11

The judge is more bound to the details of the Torah's laws than the king, which is exactly why the king must carry a second Torah scroll with him, "so that his heart not be lifted up." The king's wider discretion is the reason for his closer supervision, not an exemption from it.

והיה כשבתו על כסא ממלכתו וכתב לו את־משנה התורה הזאת על־ספר מלפני הכהנים הלוים והיתה עמו וקרא בו כל־ימי חייו למען ילמד ליראה את־ה' אלקיו לשמר את־כל־דברי התורה הזאת ואת־החקים האלה לעשתם לבלתי רום־לבבו מאחיו ולבלתי סור מן־המצוה ימין ושמאול למען יאריך ימים על־ממלכתו הוא ובניו בקרב ישראל

And when he sits on the throne of his kingdom, he shall write for himself a copy of this Torah in a book, from before the kohanim, the Levites. It shall be with him, and he shall read in it all the days of his life, so that he learn to fear Hashem his G-d, to keep all the words of this Torah and these statutes, to do them; so that his heart not be lifted above his brothers, and so that he not turn from the commandment to the right or to the left; so that he may prolong his days over his kingdom, he and his sons, in the midst of Israel.

Devarim 17:18–20

Rambam adds that the kings of the House of David judge and are judged.

מלכי בית דוד אף על פי שאין מושיבין אותם בסנהדרין יושבין ודנים הם את העם. ודנים אותם אם יש עליהן דין. אבל מלכי ישראל אין דנין ואין דנין אותם לפי שאין נכנעים לדברי תורה שמא תבוא מהן תקלה

The kings of the House of David, even though they are not seated on the Sanhedrin, sit and judge the people, and are judged if there is a claim against them. But the kings of Israel [the northern kingdom] neither judge nor are judged, because they do not submit to the words of the Torah, lest harm come of it.

Rambam, Hilchos Sanhedrin 2:5

A legal adviser to a government sits at the meeting point of the Ran's two tracks. He speaks the language of law to the holders of political power. Yehoshafat's court had two heads, one "in every matter of Hashem" and one "in every matter of the king." The question for any design of the office is how to keep both heads in place: a government that answers to the law, and a law that does not swallow the government.

Here again the risks run in both directions. If the adviser's opinion binds the government and there is no effective review of the adviser, the office approaches the supremacy the psalm denies to every human judge. If the government may set aside the law's requirements whenever it chooses, the king's track has escaped the second Torah scroll. The four questions apply to every proposal: whether it keeps the office a charge rather than a possession, whether it protects those without power, and whether it leaves every power answerable to another.

Third question: the last word

Basic Law: Freedom of Occupation, passed by the Knesset on 9 March 1994, contains an express override clause. A law that infringes the freedom of occupation is nevertheless valid if it was passed by a majority of the members of the Knesset and expressly states that it is valid notwithstanding the Basic Law; such a law expires four years after it comes into force, unless a shorter period is stated. Broader override provisions have been proposed and debated in recent years. This booklet does not describe their status.

What does Tehillim 82 say about who has the last word? It says that no human body does. G-d stands in the assembly. But the sources do say something about how a human last word should be held.

An override that must be passed by an absolute majority, must say openly what it does, and must expire after a fixed time, is a last word that knows it is not the last. It is visible, it is counted, and it is temporary. In the language of Chapter Five, it is a charge, not a status. A judicial power that may strike down laws and cannot itself be answered at all would be a last word that does not know it is a word. And a legislative power that may override any ruling at any time, without limit, would be the same thing in a different building.

The Mishnah adds a warning that applies to every body that claims the last word: "Do not say, 'Accept my view,' for they are entitled to, and not you." A court of many judges decides by majority because no single judge may impose himself. That principle does not tell us which modern institution should prevail. It tells us that whichever prevails must do so by a process that others can see, count and answer.

The Gemara gives the litigant's side of the same question.

תנו רבנן: "צדק צדק תרדף" – הלך אחר בית דין יפה, אחר רבי אליעזר ללוד, אחר רבן יוחנן בן זכאי לברור חיל

The Rabbis taught: "Justice, justice you shall pursue": go after a fine court: after Rabbi Eliezer to Lod, after Rabban Yochanan ben Zakkai to Beror Chayil.

Sanhedrin 32b

"Justice, justice you shall pursue: go after a fine court." A people that pursues justice wants courts it can trust, and it goes looking for them. Trust is the measure that no statute can supply. It is earned by courts that judge truly, and by legislatures and governments that show they too are under judgment.

The four questions, again

This chapter has not said which of Israel's current arrangements is right. The psalm does not answer that question, and the Chafetz Chaim would not want it answered by attacking the people involved. What the psalm does is set the standard that every answer must meet.

Is the Divine standing visible? An arrangement passes this test when every office in it acts as though it is watched: the court, the committee, the legal adviser and the Knesset alike.

Is the office a charge? It passes when every office can be lost for failure, and is held for the repair of the whole.

Can the weak be heard? It passes when the dal and the yasom can reach a court that will hear them, and when no change of structure leaves them at the mercy of the strongest party.

Does accountability run in every direction? It passes when no single body chooses alone, decides alone, or has the last word alone. "None judges alone but One."

For the table

1. Which of the four questions in this chapter do you think is hardest for any institution to answer honestly about itself?
2. Sifrei and Rambam make the appointment of judges a duty of the community. Who should count as "the community" when a modern state chooses judges?
3. Rambam warns a judge against setting himself up as a ruler. Can the same warning be addressed to a legislature?

4. The Ran describes two tracks of law, the court's and the king's. Where does a government legal adviser sit in that picture?
5. An override expressly stated and limited in time is one way to make the last word visible. What are its risks?

CHAPTER VIII

Accountability, Not Supremacy

A covenantal republican synthesis

This chapter draws the psalm into the framework I have called Covenantal Republicanism. Its claim is that Tehillim 82 is a charter of non-domination: every office answers to a law above it and to the people below it, and none is supreme. It reads the Ran, Bava Metzia 10a, Devarim 17 and Pettit side by side.

The claim

The first seven chapters read Tehillim 82 verse by verse and then set it beside the questions of a modern state. This chapter draws the threads together. Its claim is that the psalm is a charter of non-domination. It teaches that every human office, the court first of all, stands under a law above it and answers to the people below it, and that no office is supreme. That is the core of what I have called Covenantal Republicanism, and Tehillim 82 is one of its clearest sources.

The phrase needs a word of explanation. In the monograph *The Jurisprudence of Non-Domination*, I argued that freedom in its authentic republican sense is not non-interference but non-domination: "the structural, institutional immunity from exposure to arbitrary power." Philip Pettit, who did more than anyone in our time to recover that idea, gives the classic example. A slave with an indulgent master may never be struck or commanded, and he is still not free, because he lives at the mercy of another's will. Freedom is not the absence of interference. It is the absence of a master.

The monograph's further claim is that this idea is older than Rome. It was established in the Torah's own constitution, and the Gemara states it as law.

Servants of G-d, not servants to servants

> כי־לי בני־ישראל עבדים עבדי הם אשר־הוצאתי אותם מארץ מצרים
>
> *For to Me the children of Israel are servants; they are My servants, whom I brought out of the land of Egypt.*
>
> Vayikra 25:55 (closing words omitted)

The verse closes the laws of the Hebrew servant. The Gemara in Bava Metzia reads it as a limit on every human claim to own another person's labour. Rav rules that a hired worker may withdraw from his work even in the middle of the day, and the Gemara gives the reason.

> דכתיב: "כי לי בני ישראל עבדים, עבדי הם" – ולא עבדים לעבדים
>
> *… as it is written, "For to Me the children of Israel are servants; they are My servants" (Vayikra 25:55): and not servants to servants.*
>
> Bava Metzia 10a

"My servants, and not servants to servants." A Jew may contract his labour. He may not sell his freedom, even for a day. Because he belongs to G-d, he cannot belong to any man.

The same logic governs the court. Tehillim 82 puts G-d in the assembly so that no one else can stand there as master. The judge is elohim only because he judges for G-d. The moment he begins to judge for himself, for his camp or for his own view of what the people ought to want, he has made the litigants his servants. The psalm calls him back: you will die like a man.

A pyramid or a covenant

Daniel Elazar distinguished two architectures of power. One is the pyramid: a sovereign centre commands a passive periphery, and a democracy that keeps the pyramid has only changed who sits at the top. The other is the covenant, or matrix: self-governing parts bound by a pact under a higher authority, with power distributed among them. Elazar traced the second model to biblical Israel.

Tehillim 82 is a covenantal psalm in exactly this sense. It does not put the court at the top of a pyramid. It does not put the king there either. It puts G-d in the assembly, and every human office around Him, each answerable for its own charge.

Yehoshafat's court in Chapter Six had this shape. It had two heads, one for the matters of Hashem and one for the matters of the king. It instructed the lower courts and did not swallow them. And the king who built it went out first among the people and brought them back to the covenant. The court was one part of a covenantal order, not its master.

The Ran's two tracks

The Ran gives the theory its most precise form. We saw in Chapter Seven that he divides the law into two tracks, true justice and the repair of the political order, and gives each its own body. He also explains what went wrong when Israel asked Shmuel for a king.

אך הי' חטאתם באמרם שימה לנו מלך לשפטנו ככל הגוים, שרצו שיהיו משפטיהם נמשכים מצד המלכות לא מצד שופטי התורה

But their sin was in saying, "Set for us a king to judge us like all the nations": they wanted their judgments to flow from the side of the monarchy and not from the side of the judges of the Torah.

Derashos HaRan, Derush 11 (on Shmuel I 8:5)

Their sin was not in wanting a king. The Torah provides for one. Their sin was that "they wanted their judgments to flow from the side of the monarchy and not from the side of the judges of the Torah." They wanted one track to swallow the other.

That is the danger the psalm guards against from the opposite side. Israel in the days of Shmuel wanted the king to absorb the court. The judges of Tehillim 82 behave as though the court could absorb everything, including G-d's own judgment. Both are forms of the same error. In each, one office claims a supremacy that belongs to no human office.

The Ran's answer is that each track is bounded. The judges' "capacity does not extend beyond" true justice. The king is bound by a second Torah scroll "so that his heart not be lifted above his brothers." And the king himself is a servant of the people, not their master.

נמצא שאין המלכות דבק עם המלך אבל תואר נוסף עליו לצורך תיקון הכלל ולכן אין ראוי למלך שיראה עצמו כמושל ושליט על העם אבל כעבד עליהם לצרך תקונם לצורך תיקונם. ומפני זה אמרו בהוריות (י.-י:) כסבורים ששררות אני נותן לכם. עבדות אני נותן לכם

It turns out that kingship is not attached to the king; it is a title added to him for the repair of the whole. Therefore it is not fitting for a king to see himself as master and ruler over the people, but as a servant to them, for their repair. And for this reason they said in Horayos (10a–b): "You think I am giving you rulership? I am giving you servitude."

Derashos HaRan, Derush 11

Kingship is a title "added to" the king "for the repair of the whole." The same is true of the judge's seat. Neither is a possession. Both are charges.

Gavra and cheftza

The Brisker tradition of Talmudic analysis gives this distinction a sharper edge. Rabbi Chaim Soloveitchik of Brisk taught his students to separate the gavra, the person and his obligation, from the cheftza, the objective character of the thing or the norm. In the Master Essay I argued that law treated as a set of personal commands remains open to rewriting by whoever holds power, while law understood as cheftza forms a domain that arbitrary will cannot casually rewrite.

Tehillim 82 applies this to the judge. The judgment is G-d's (Devarim 1:17). It is cheftza, an objective thing that the judge serves and does not own. The judges of the psalm have turned it into gavra: a matter of whose face they wish to lift. The psalm's rebuke restores the judgment to its owner.

Accountability, not supremacy

The Gemara on Sanhedrin 32b teaches that the double word in "justice, justice you shall pursue" covers both strict law and compromise.

> כדתניא: "צדק צדק תרדף" – אחד לדין ואחד לפשרה. כיצד? שתי ספינות עוברות בנהר ופגעו זה בזה, אם עוברות שתיהן – שתיהן טובעות, בזה אחר זה – שתיהן עוברות. וכן שני גמלים שהיו עולים במעלות בית חורון ופגעו זה בזה, אם עלו שניהן – שניהן נופלין, בזה אחר זה – שניהן עולין
>
> *As it was taught: "Justice, justice you shall pursue": one for judgment and one for compromise. How so? Two boats passing on a river met each other: if both pass at once, both sink; one after the other, both pass. And likewise two camels climbing the ascent of Beis Choron that met each other: if both go up at once, both fall; one after the other, both go up.*
>
> Sanhedrin 32b

Two boats meet on a narrow river. If both insist on passing at once, both sink. If one waits, both pass. Two camels on the ascent of Beis Choron face the same choice. Strict law tells us who has the right of way. Compromise tells us how both can arrive.

The image is about litigants, but it describes institutions too. A court and a legislature, a government and its legal adviser, are boats on the same river. A system in which every office insists on its own supremacy will sink. A system in which every office knows that it is answerable, to the law above and to the people below, can let each pass in its turn.

That is the meaning of "accountability, not supremacy." It is not a formula for weakening any office. The psalm asks the judges to be strong: to rescue the poor from the hand of the wicked, and not to fear any man. Yehoshafat tells them to be strong and act. A judge who is accountable is still a judge. What he may not be is a master.

Four marks of a covenantal court

The psalm, read with its commentators and with the halachah, gives four marks by which a covenantal court can be recognised. They are the four questions of Chapter Seven, turned into a description.

First, it knows it is watched. It sits "in awe and fear," as Rambam rules, because the Shechinah is with it. It does not say, "We sit by ourselves."

Second, it holds its office as a charge. Its judges fled from appointment until they were pressed. They are elohim only while they judge truly.

Third, it opens its mouth for the mute. It hears the case of a perutah as carefully as a case of a hundred maneh, puts the orphan's case first, and does not withdraw when the strong party is about to lose.

Fourth, it answers and is answered. Like the kings of the House of David, it judges and is judged. It does not judge alone, "for none judges alone but One."

Robert Cover observed that Jewish law begins not with rights but with obligation, with a community standing at Sinai under the mitzvah. Tehillim 82 is a psalm of obligation. It does not tell the poor what they may demand. It tells the judges what they owe. Rabbi Jonathan Sacks drew the contrast between a contract, which binds interests, and a covenant, which binds people in trust and shared responsibility. A court that knows it stands before G-d is bound to its people by covenant, not contract. Its authority rests on trust, and trust is earned one true judgment at a time.

The psalm's last verse turns from the judges to G-d Himself. The next chapter reads it.

For the table

1. Bava Metzia 10a says "servants of Mine, not servants to servants." What does that mean for a citizen standing before a court?
2. The king writes a Torah scroll so that his heart is not lifted above his brothers. What would the modern equivalent of that scroll be?
3. Pettit defines freedom as not being subject to arbitrary power. Is a court that cannot be reviewed an arbitrary power by that definition?
4. The Ran gives the king a track the court does not have. Does that make the king more powerful, or more answerable?
5. What would an institution have to do for the Divine standing in the assembly to be visible to the people it serves?

CHAPTER IX

“Arise, O G-d, Judge the Earth”

The closing horizon (Tehillim 82:8)

The last verse turns away from the judges. The psalmist speaks to G-d directly and asks Him to judge the earth Himself. This chapter reads it with the commentators and Midrash Tehillim, and asks what it means to end a psalm about courts with a prayer that every court will one day be judged.

The psalmist speaks

> קומה אלקים שפטה הארץ כי־אתה תנחל בכל־הגוים

Arise, O G-d, judge the earth, for You inherit all the nations.
Tehillim 82:8

Malbim told us that the word of Hashem to the judges ended with verse 7. Verse 8 is the psalmist’s own voice. For seven verses, G-d has spoken to the judges. Now Asaf turns to G-d and asks Him to do what the judges would not do.

The change of speaker is the most important thing about the verse. The psalm does not end with a command, or with a threat. It ends with a prayer. Having watched the court fail, the psalmist does not turn to a better court. He turns to the One who stands in every court.

Four readings of the prayer

Rashi hears it as a prayer against the corrupt judges: that G-d arise and cut them off from Israel.

> קומה אלקים. אסף התחיל להתפלל שיקום ויכרית אותם הדינין המקלקלין מישראל: כי אתה. הוא הנוחל הגוים, והכל בידך לשפוט

“Arise, O G-d”: Asaf began to pray that He arise and cut off from Israel those corrupt judges. “For You”: You are the One who inherits the nations, and everything is in Your hand to judge.
Rashi on Tehillim 82:8

"Everything is in Your hand to judge." Rashi's reading is the most direct. The judges have failed; let G-d remove them.

Ibn Ezra offers three voices for the same words.

> קומה - תפלת המשורר, או ידבר על לשון הצועקים חמס או דרך נבואה.

> *"Arise": the prayer of the psalmist; or he speaks in the voice of those who cry out against violence; or by way of prophecy.*
>
> Ibn Ezra on Tehillim 82:8

It may be the psalmist's prayer. It may be the cry of those who suffer violence. Or it may be prophecy. Each reading is true to the psalm. The poor who have been failed by the court cry out. The psalmist joins them. And the cry is also a promise that G-d will answer.

Radak and the Metzudos read the second half of the verse, "for You inherit all the nations," as a statement about whom G-d takes as His own.

> קומה. אחר שאין השופטים שופטים אמת צריך שתשפוט אתה הארץ ותקח משפט העניים מעושקיהם: כי אתה תנחל בכל הגוים. אתה תנחל העניים העשוקים באיזה עם שיהיה כלומר הם עמך ונחלתך כי ברוב העניים והעשוקים הם דכאי רוח ואנשי אמת:

> *"Arise": since the judges do not judge truly, You must judge the earth and take the judgment of the poor from their oppressors. "For You inherit all the nations": You take as Your inheritance the oppressed poor among whatever people they may be; that is, they are Your people and Your inheritance, for most of the poor and oppressed are humble of spirit and people of truth.*
>
> Radak on Tehillim 82:8

> שפטה הארץ. שפוט אתה דין עני ואביון: כי אתה תנחל וגו'. הלא אף בכל גויי הארץ תאהב העניים דכאי הרוח והנחלתם לך לנחלה לזה שפוט את משפטם:

> *"Judge the earth": You judge the cause of the poor and the needy. "For You inherit": surely, even among all the nations of the earth You love the poor, the humble of spirit, and You have taken them as Your inheritance; therefore judge their cause.*
>
> Metzudas David on Tehillim 82:8

G-d's inheritance among all the nations is the oppressed poor, "for most of the poor and oppressed are humble of spirit and people of truth." The Metzudos say it in one line: "even among all the nations of the earth You love the poor." So the prayer of verse 8 is the answer to verses 3 and 4. The judges would not judge the poor and the orphan. G-d will, because they are His.

Malbim draws the most complete conclusion.

קומה, עתה יסב המשורר פניו אל ה' האומר זאת, ואומר אליו למה תדבר אל אלה בני עולה שהם ישפטו את הארץ והם יהיה להם חלק בארץ כאלקים, הם לא ינחלו את הארץ כי הם מוכנים למות, והם לא ישפטו אותה בצדק, קומה אלקים ואתה שפטה הארץ, כי אתה בראת אותה ואתה תנחל בכל הגוים כי היא שלך לעולם, ועליך לקיימה ולהעמידה ע"י משפט, ולכן אתה שפטה הארץ:

"Arise": now the psalmist turns his face to Hashem, who has said this, and says to Him: why speak to these sons of iniquity, as if they would judge the earth and have a share in it like elohim? They will not inherit the earth, for they are destined to die, and they will not judge it in righteousness. "Arise, O G-d, and You judge the earth," for You created it, and "You inherit all the nations," for it is Yours forever, and it is upon You to sustain it and establish it through justice; therefore, You judge the earth.

Malbim on Tehillim 82:8

"Why speak to these sons of iniquity, as if they would judge the earth and have a share in it like elohim?" The judges will not inherit the earth; they will die. G-d created it, it is His forever, and it falls to Him to sustain it through justice. "Therefore, You judge the earth."

Malbim's reading closes the circle that verse 6 opened. There, he explained that judges are called elohim because they sustain the world that G-d created. Here, when they fail, the work returns to its Owner. The world does not stand without justice, and if human courts will not give it, G-d will.

Midrash Tehillim: the throne of judgment

Midrash Tehillim reads verse 8 with a verse from an earlier psalm.

אני אמרתי אלקים אתם וגו'. מצוה אחת צויתי לאדם ולא עמד בה וגרשתיו מיד שנאמר (בראשית ג כד) ויגרש את האדם. אכן כאדם תמותון וכאחד השרים תפולו. אלו שרים של מעלה שנאמר (ישעיה כד כא) יפקוד ה' על צבא מרום במרום. קומה אלקים שפטה הארץ כי אתה תנחל. העבר את אלו ותהא אתה מולך במשפט ושופט עליהם שנאמר (תהלים ט ח) וה' לעולם ישב כונן למשפט כסאו:

"I said, you are godly beings." One commandment I commanded Adam, and he did not stand by it, and I drove him out at once, as it says (Bereishis 3:24), "He drove out the man." "Yet you will die like a man, and fall like one of the princes": these are the princes on high, as it says (Yeshayahu 24:21), "Hashem will punish the host of the heights on high." "Arise, O G-d, judge the earth, for You inherit": remove these, and You reign in justice and judge over them, as it says (Tehillim 9:8), "Hashem sits enthroned forever; He has established His throne for judgment."

Midrash Tehillim 82:3

"Remove these, and You reign in justice." Then Tehillim 9: "Hashem sits enthroned forever; He has established His throne for judgment." The first verse of our psalm said that G-d stands in the assembly. The Midrash ends by seating Him on His throne. The One who stood to watch the judges now sits to judge.

He is the Judge

The Mishnah in Avos describes the judgment that every person will one day face.

> לידע להודיע ולהודע שהוא קל, הוא היוצר, הוא הבורא, הוא המבין, הוא הדין, הוא עד, הוא בעל דין, והוא עתיד לדון. ברוך הוא, שאין לפניו לא עולה, ולא שכחה, ולא משוא פנים, ולא מקח שחד, שהכל שלו
>
> *... to know, to make known and to be made aware that He is G-d, He is the Former, He is the Creator, He is the Discerner, He is the Judge, He is the Witness, He is the Plaintiff, and He will in the future judge. Blessed is He, before whom there is no iniquity, no forgetting, no favouritism and no taking of a bribe, for everything is His.*
>
> Avos 4:22

"He is the Judge, He is the Witness, He is the Plaintiff, and He will in the future judge." And then a list that we have already met: "before whom there is no iniquity, no forgetting, no favouritism and no taking of a bribe, for everything is His." These are exactly the failures of the judges in Tehillim 82. The iniquity of verse 2, the lifting of faces of verse 2, the bribe that blinds in verse 5. G-d is the Judge in whom none of them is found.

The Torah says the same in Devarim.

> אשר לא־ישא פנים ולא יקח שחד עשה משפט יתום ואלמנה ואהב גר לתת לו לחם ושמלה
>
> *... who does not lift up faces and does not take a bribe; who executes justice for the orphan and the widow, and loves the stranger, to give him bread and clothing.*
>
> Devarim 10:17–18 (opening words of v. 17 omitted)

G-d "does not lift up faces and does not take a bribe," and He "executes justice for the orphan and the widow, and loves the stranger." The human judge is commanded to imitate this. The psalm shows what happens when he does not. And verse 8 is the hope that the Judge whom the human judges were meant to imitate will judge in their place.

I will restore your judges

The prophets give the prayer of verse 8 its horizon.

ואשיבה שפטיך כבראשנה ויעציך כבתחלה אחרי־כן יקרא לך עיר הצדק קריה נאמנה ציון במשפט תפדה ושביה בצדקה

I will restore your judges as at first, and your counsellors as at the beginning; afterwards you will be called City of Righteousness, Faithful City. Zion will be redeemed through justice, and her returnees through righteousness.

Yeshayahu 1:26–27

Yeshayahu's first chapter is a long rebuke of corrupt princes who love bribes and abandon the orphan and the widow. We read part of it in Chapter Four. It ends with a promise: "I will restore your judges as at first." The answer to failed judges is restored judges. And the result is a city with a new name: City of Righteousness, Faithful City. "Zion will be redeemed through justice."

That is the horizon of Tehillim 82. The psalm asks G-d to judge the earth because the judges have failed. The prophet promises that G-d will answer by giving Israel judges who do not fail. The redemption the prophets describe is a world whose courts are true.

A Tuesday psalm

The Levites sang Tehillim 82 every third day of the week.

השיר שהיו הלוים אומרים במקדש, ביום הראשון היו אומרים (תהילים כ״ד:א'), לה' הארץ ומלואה תבל וישבי בה. בשני היו אומרים (שם מח), גדול ה' ומהלל מאד בעיר אלקינו הר קדשו. בשלישי היו אומרים (שם פב), אלקים נצב בעדת קל בקרב אלקים ישפט

The song the Levites would say in the Mikdash: on the first day they would say, "The earth and its fullness are Hashem's, the world and those who dwell in it." On the second they would say, "Great is Hashem and much praised, in the city of our G-d, His holy mountain." On the third they would say, "G-d stands in the assembly of G-d; in the midst of the judges He judges."

Mishnah Tamid 7:4 (opening)

They sang it in the Mikdash, where the Great Sanhedrin sat in the Chamber of Hewn Stone. Every Tuesday the song in the Mikdash said that G-d stood among the judges, that He asked them how long they would judge iniquity, and that they would die like men. And every Tuesday the song ended with a prayer that G-d Himself would judge the earth.

That weekly reminder is itself a kind of institution. It did not give any office a new power. It reminded every office of the power above it. A modern state cannot ask its courts to listen to the Levites. But it can build institutions that carry the same reminder: that every power is watched, that every office is a charge, that the weak must be heard, and that no one judges alone.

This booklet was finished on Tuesday, 10 November 2026, the day of the week on which the Levites sang this psalm, and the first day of Rosh Chodesh Kislev 5787. It ends where the psalm ends, with Asaf's prayer.

> Arise, O G-d, judge the earth, for You inherit all the nations.

For the table

1. Why does the psalm end with a prayer rather than a command to the judges?
2. Rashi, Radak and Malbim read "You will inherit all the nations" differently. Which reading speaks most to you?
3. Yeshayahu promises "I will restore your judges as at first." What would a restored court look like?
4. Avos says every person will one day give account before the King of kings. How does that change the way one sits in judgment over others?
5. The Levites sang this psalm every Tuesday. What would it mean to say it weekly as a citizen?

Appendix A. Tehillim 82 in full

Hebrew from the Sefaria Miqra text (vowels removed); English from Tanakh: The Holy Scriptures (Jewish Publication Society, 1985), via Sefaria, with divine names written G-d and L-rd.

1 מזמור לאסף אלקים נצב בעדת־קל בקרב אלקים ישפט

A psalm of Asaph. G-d stands in the divine assembly; among the divine beings He pronounces judgment.

2 עד־מתי תשפטו־עול ופני רשעים תשאו־סלה

How long will you judge perversely, showing favor to the wicked? Selah.

3 שפטו־דל ויתום עני ורש הצדיקו

Judge the wretched and the orphan, vindicate the lowly and the poor,

4 פלטו־דל ואביון מיד רשעים הצילו

rescue the wretched and the needy; save them from the hand of the wicked.

5 לא ידעו ולא יבינו בחשכה יתהלכו ימוטו כל־מוסדי ארץ

They neither know nor understand, they go about in darkness; all the foundations of the earth totter.

6 אני־אמרתי אלקים אתם ובני עליון כלכם

I had taken you for divine beings, sons of the Most High, all of you;

7 אכן כאדם תמותון וכאחד השרים תפלו

but you shall die as men do, fall like any prince.

8 קומה אלקים שפטה הארץ כי־אתה תנחל בכל־הגוים

Arise, O G-d, judge the earth, for all the nations are Your possession.

Appendix B. Divrei HaYamim II 19:4–11 in full

Hebrew from the Sefaria Miqra text (vowels removed); English from Tanakh: The Holy Scriptures (Jewish Publication Society, 1985), via Sefaria, with divine names written G-d and L-rd.

4 וישב יהושפט בירושלם וישב ויצא בעם מבאר שבע עד־הר אפרים וישיבם אל־ה' אלקי אבותיהם

Jehoshaphat remained in Jerusalem a while and then went out among the people from Beer-sheba to the hill country of Ephraim; he brought them back to the L-RD G-d of their fathers.

5 ויעמד שפטים בארץ בכל־ערי יהודה הבצרות לעיר ועיר

He appointed judges in the land in all the fortified towns of Judah, in each and every town.

6 ויאמר אל־השפטים ראו מה־אתם עשים כי לא לאדם תשפטו כי לה' ועמכם בדבר משפט

He charged the judges: “Consider what you are doing, for you judge not on behalf of man, but on behalf of the L-RD, and He is with you when you pass judgment.

7 ועתה יהי פחד־ה' עליכם שמרו ועשו כי־אין עם־ה' אלקינו עולה ומשא פנים ומקח־שחד

Now let the dread of the L-RD be upon you; act with care, for there is no injustice or favoritism or bribe-taking with the L-RD our G-d.”

8 וגם בירושלם העמיד יהושפט מן־הלוים והכהנים ומראשי האבות לישראל למשפט ה' ולריב וישבו ירושלם

Jehoshaphat also appointed in Jerusalem some Levites and priests and heads of the clans of Israelites for rendering judgment in matters of the L-RD, and for disputes. Then they returned to Jerusalem.

9 ויצו עליהם לאמר כה תעשון ביראת ה' באמונה ובלבב שלם

He charged them, “This is how you shall act: in fear of the L-RD, with fidelity, and with whole heart.

10 וכל־ריב אשר־יבוא עליכם מאחיכם הישבים בעריהם בין־דם לדם בין־תורה למצוה לחקים ולמשפטים והזהרתם אתם ולא יאשמו לה' והיה־קצף עליכם ועל־אחיכם כה תעשון ולא תאשמו

When a dispute comes before you from your brothers living in their towns, whether about homicide, or about ritual, or laws or rules, you must instruct them so that they do not incur guilt before the L-RD and wrath be upon you and your brothers. Act so and you will not incur guilt.

11 והנה אמריהו כהן הראש עליכם לכל דבר־ה' וזבדיהו בן־ישמעאל הנגיד לבית־יהודה לכל דבר־המלך ושטרים הלוים לפניכם חזקו ועשו ויהי ה' עם־הטוב

See, Amariah the chief priest is over you in all cases concerning the L-RD, and Zebadiah son of Ishmael is the commander of the house of Judah in all cases concerning the king; the Levitical officials are at your disposal; act with resolve and the L-RD be with the good."

Glossary

Asaf. A Levite singer in the days of David; twelve psalms, including Tehillim 82, bear his name.

Beis din. A rabbinical court; the smallest court for monetary cases has three judges.

Covenantal Republicanism. The framework developed in Aryeh Leib Thorne Toren's monograph and Master Essay: a reading of the Torah's political teaching as a constitution of non-domination under a higher law.

Dal, yasom, ani, rash. The four names of verse 3: the poor or weak, the orphan, the afflicted, the destitute.

Dayan. A judge in a Torah court.

Din emes la-amito. "A true judgment truthfully": a judgment true in its outcome and in its making.

Elokim / Elokim. A word for G-d that the Torah also uses for judges (Shemos 22:7–8, 27). In Hebrew lines this booklet writes it אלקים.

Gehinnom. The place of judgment after death in rabbinic language.

Gemara. The Talmud's discussion of the Mishnah; here the Babylonian Talmud.

Hakaras panim. "Recognising faces": partiality toward a litigant (Devarim 1:17).

Hilchos Sanhedrin. The section of Rambam's Mishneh Torah on courts and judges.

Ibn Ezra. Rabbi Avraham ibn Ezra (1089–c. 1164), Spain and Europe, grammarian and commentator.

Lashon hara. Speech that disparages a person, even if true; avoided throughout Chapter Seven.

Malbim. Rabbi Meir Leibush Weiser (1809–1879), commentator on Tanakh.

Metzudos. Metzudas David and Metzudas Tziyon, the commentaries of Rabbi David Altschuler and his son Rabbi Yechiel Hillel (eighteenth century).

Non-domination. Freedom understood as not being subject to arbitrary power, in the language of Philip Pettit.

Perutah. The smallest coin of value in halachah.

Psharah. Compromise between litigants, as opposed to strict law.

Radak. Rabbi David Kimchi (c. 1160–1235), Provence, grammarian and commentator.

Ran. Rabbeinu Nissim of Gerona (c. 1320–1376); his Derashos, especially the eleventh, set out two tracks of law.

Rashi. Rabbi Shlomo Yitzchaki (1040–1105), Troyes, the foundational commentator on Tanakh and Talmud.

Shechinah. The Divine presence.

Shir shel Yom. The psalm of the day, sung by the Levites in the Mikdash and said in the morning prayer.

Shochad. A bribe; in halachah even a favour of words can count.

Shoftim, shotrim. Judges and officers (Devarim 16:18).

Yehoshafat. King of Judah (Divrei HaYamim II 17–20), who appointed judges in the cities of Judah.

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